

TRADES' UNIONS AND STRIKES

Their Philosophy and Intention



BY

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SECRETARY TO THE LONDON CONSOLIDATED SOCIETY OF
BOOKBINDERS

“United to support, but not combined to injure.”

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ADVERTISEMENT.

THE following pages were written by the desire of the London Consolidated Society of Bookbinders, as expressed in the following resolution;—

Lodge Meeting, Nov. 7, 1859, Mr. T. Marston in the Chair.

RESOLVED,—That the Secretary of this Society be requested to write an essay on the Philosophy of Trades' Unions, in reply to the argument against them, to be published in the form of a pamphlet, explaining their true object and intention.

(Moved by Mr. W. FRANKLIN. Seconded by Mr. ROBT. SAUNDERS.

The writer is aware of many imperfections; and doubtless many more, of which he has not been aware, will be discovered by those who do him the honour of perusal. Having been brought up to the trade, and for many years a workman, he has stated what he knows to be true; and if it be said that his is only the working man's view of the subject, it may be replied that such view is, of all others, the one most needed; as the "press" has teemed "with little else than the employers' view of it; and who can form a true judgment when only one side of a question is presented to him?

Although not required to do so, he has, previous to their going to the printer, read the whole of the following pages to

the Committee of his Society, who, in the following resolution, expressed their opinion of them:—

Committee Room, January 25th, 1860.

RESOLVED,—That the concluding part of the Essay on the Philosophy of Trades' Unions and Strikes, now read, and those read at previous meetings of this Committee, are in its opinion a faithful representation of their views on the subject, and, as they believe, those of their trade generally.

What is written, it is, perhaps, not too much to say, may therefore be taken to set forth, as far as they and those of their trade are to be regarded as a sample, not simply their views, or those of the writer, but those of the working classes generally.

✎ The members of our Society will doubtless be surprised at these pages being published at their own office, after two or three first-class publishers being named at the meeting which passed the above resolution. But amid the outcry for free trade in labour there does not appear to be free trade in publishing. Although excellent reasons were given for declining to publish this work, and with the greatest civility, we cannot conceal from ourselves that such a work as this is altogether “tabooed” by those who are termed “respectable” publishers; not that they would have any objection; but as it appears to us, they fear the “public opinion” of the class to which they belong, which we need not say is dead against Trades' Unions. We hope we are mistaken, yet we cannot but think that, however essential it may be to know both sides of a question, that on this subject the middle class do not wish that any but their own side should be known.

We, however, should ill deserve, as “English workmen,” the high character given of us by the “Quarterly” reviewer, if we

felt at a loss from this circumstance. We therefore publish the work ourselves. But as we are aware that we cannot do it so effectively as “the trade,” we beg the co-operation of those who feel interested in our success. Should there be any difficulty in obtaining this work, twelve postage stamps sent to the publisher will insure its transmission, post free, to any part of the United Kingdom.

No. 5, Racquet Court, Fleet-street, E.C.

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THE object of this pamphlet is to obtain a hearing on the subject of “Trades’ Unions” and “Strikes” from that class who, from their position in society, can only obtain a knowledge of it from the evidence of others. In setting forth the principle which calls Trade Societies into existence, it is not intended to defend all that has been done by Trades’ Unions, any more than an advocate of religion would attempt to defend all that has been done in its name by religious professors. Trades’ Unionists, generally, are neither writers, nor, to any great extent, able to employ writers in their behalf, nor, indeed, to the limited extent that they are able, do they at present see the necessity of doing so; while, on the contrary, those opposed to them., from their wealth and position in society, form a great part of the very class by whom writers are directly and indirectly supported;—hence, while the press—newspaper and periodical—teems with denunciations against them, scarcely a voice, directly from themselves, is heard through the press in their behalf. Indeed, it has been felt by impartial men to be the one great difficulty in the way of understanding the subject, that all they can get hold of on the matter—except the merely local statements relative to a particular strike or dispute, which may then be pending—is exclusively on one side. As far as our limited means and power will enable us, it is intended by this pamphlet to supply that deficiency, by a statement direct from a body of working men, by their accredited agent, of their views on the subject.

The principal argument against Trades’ Unions is professed to be derived from the alleged ignorance of the working classes of Political Economy. As this term is used by many without having a precise idea of what it is, and by different persons in a different sense, we will commence by very briefly stating the meaning which we attach to it: Political Economy is the science which treats of the principle of exchange in its operation

in the production of wealth, and its operation and influence on civilised society.

Man is said to be an animal—in contradistinction from all others—that makes exchanges. And it is by the principle of exchange that all the transactions of civilised life are carried on, by which, indeed, civilised society exists and is held together. But if man be an animal that makes exchanges, he undoubtedly retains, in common with the carnivora to which he in part belongs, instincts of a predatory character, and might be defined to be an animal that, besides making exchanges, also steals. The act of exchange embraces every conceivable form in which the subject can be treated, and, indeed, is that out of which the science itself is evolved. It is only necessary, therefore, by analysing this act, to illustrate what we understand by the term Political Economy. By the act of exchange, the four things essential to a civilised community are supposed, without which, indeed, it could not exist, namely. LABOUR—CAPITAL—the right of INDIVIDUAL APPROPRIATION, or PROPERTY—and SECURITY. *Labour*, to produce the thing exchanged; *Capital*, in the accumulated labour, which results in the article exchanged; the recognition of *the right of Individual Appropriation*, or property, by which the act of exchange takes place, as distinguished from the act of taking or keeping possession of the article by force; and *Security*, which ensures the peaceful continuation of a succession of exchanges to all who have anything to dispose of: the result of the whole, in civilised life, being the four great classes into which society is divided. Labour yielding *wages* giving support to all who labour (using the term in its most extensive sense); capital giving *profit*—the revenue of those who employ capital. The right of individual appropriation, or property, as applied to the land, which, without remark, we take as we find it, gives *rent*, which gives revenue to landlords. And

security supposes *taxes*, which support those who defend the country, administer its laws, and tax-receivers in general. This last strongly illustrates what is very little noticed, if at all, by political economists—namely, the predatory instincts of mankind, the omission of which often leads to very great error in the application of rules of political economy, and to none more than to their application to Trades' Unions. And yet these predatory instincts are most unmistakably indicated and provided against by this element of exchange, security, in the absence of which it certainly could not go on, as in communities it requires laws with strong force to support those who administer them and enforce their execution, without which the community could not exist; and in separate nations, armies and fleets for defence, and, as a stronger illustration, for attack. On these four elements of the principle of exchange, without either of which it could not exist, it will be seen the whole system of civilised society rests. We have thus particularised each element, and its respective result, to show that those who live by labour are, by *right*, entitled to their revenue by the simple action of the principle of exchange equally with the other three great divisions of society, as opposed to the confused idea of wages being derived from the relation of master and servant, involving a sort of benevolent patronage on the one side, and obligation on the other. And it will be our object to show, that it is only by trade combinations that the *free* exercise of this principle can be secured to working men.

Our business, however, is only with the action of the principle of exchange upon wages. It is usual, with a certain class of political economists, of whom A. Black, Esq., M.P., may be considered a fair exponent, to lecture the working classes on the principles of this science. Accordingly, in his recent lecture in Edinburgh, he devotes five, out of the twenty-two pages it com-

prises, to the consideration of the value of commodities—labour being one in its nature like the rest—which is determined by demand and supply; the pernicious result of monopoly; of capital and labour, and of each being necessary for the employment of the other; that capital will not be employed unless a profit can be obtained by its employment; that when the profit of capital is high in any trade or manufacture, so many will be tempted to embark in it that this high profit will soon be reduced to its ordinary level; and the same with high wages, except they proceed from great skill, which, from the nature of things, must always be rare; and, lastly, if a capitalist has embarked his capital upon the supposition that he has to pay a certain sum for wages, and he is obliged to pay more, his profit will be reduced by that amount, which will be very likely to cause him to withdraw from the business in which he has engaged, and, of course, cease to pay wages, which should be a lesson to workmen not to demand too high wages.

With due respect for Mr. Black, who doubtless was actuated by a sincere desire to promote what he believed to be the true interests of the working classes, we think, if, instead of puzzling himself and his readers by elaborately explaining the above propositions, which nobody is likely to dispute, and which are, in their enunciation, like that of two and two making four, already at their plainest terms, he had endeavoured to show how it was that these things, which almost everybody knows, failed to convince the working classes that Trades' Unions are unnecessary, and Strikes always pernicious, and shown how they were in error: he would then have conferred a real benefit on the working classes. It is a great mistake, in gentlemen of Mr. Black's position, to suppose that working men are practically ignorant of the truths of political economy. With it as a science they may be ignorant; indeed, some of them may not even know

that there is such a science. But these gentlemen seem to forget that political economy is only the compilation into a code of rules the practice of all men in all ages who have bought and sold; have been engaged in commercial transactions; or in any way have made use of the principle of exchange. Every costermonger is obliged to regulate what he does in buying and selling by the law of demand and supply, which if explained to him as being a part of the science of political economy, he would be as much surprised that he had, without knowing it, been practising the science all his life, as the honest gentleman in the French comedy was, on his being taught composition, that he had been talking prose all his life without knowing it. Except in the innocent dulness of the latter, which would certainly not belong to the costermonger, the cases are exactly parallel.

We therefore will endeavour to show why the above propositions fail in convincing working men that they are doing wrong in entering into combination. Not that these propositions are doubted, but because implicit belief in them is perfectly consistent with the propriety of Trade Combinations. We shall therefore proceed to consider —

- I. —Wages, and what determines their value.
- II. —Trade Societies, for the protection of wages.
- III. —The means used by them for that purpose.

I.— WAGES.

It is superfluous to say that the price of labour, like that of everything else, is determined by the quantity or supply of it *permanently* in the market; when the supply of it *permanently* much exceeds its demand, nothing can prevent the reduction of wages; and, conversely, when the demand for it permanently much exceeds its supply, nothing can prevent their rise. In these two extreme points all contention is hopeless. No Trade Society on the one hand, however well organised, can, or ever did, prevent the fall of wages in the first case; nor, in the other, can, or ever did, the most stringent legislative enactment, of which there have been many instances, prevent their rise. Trade Societies, however, rarely meddle with these two extremes. Leaving them, we come to the intermediate states that admit the operation of Trade Societies; and, indeed, which call them into existence.

In all exchanges, besides the adjustment which takes place in them by the operation of demand and supply, there is always, from the predatory instinct inherent in the very nature of man, noticed above, a desire, on one side or the other, to take advantage of the necessities either of the buyer or seller; and, in proportion as these necessities are immediate and pressing, to press that advantage accordingly. Take, for example, an estate for sale, of which it is known that, come what will, it must be sold in a fortnight for ready money, or what is deemed as

— WAGES.

good as ready money. If the estate be large, the seller, under these circumstances of necessity, will be sure to lose some thousands of pounds. In wages, besides the rate of wages, which results from the demand for it in proportion to its supply, there is a lower rate which may be the result of the necessities of the workman. For example, in those trades where there is what is called the “Sweating System” practised, the fair result of the demand and supply rate of wages is represented by the amount received by the “Sweater;”¹ perhaps, however, his demand, to enable him to get the work, may be somewhat less. He, however, gets the work done lower still; which is his profit, by employing those whose necessities compel them to work for his price, or starve—some of these, perhaps, may be first-rate workmen, whose habits of intemperance have reduced them to the lowest state of destitution, and who are glad to work for any price. There is, therefore, a wide difference between the demand and supply rate of wages, or the rate which the fair operation of exchange would give, if the buyer and seller of it were on equal terms, and that which is, or would be, compelled, if the employer dealt with each man “singly,” and obtained the reduction which his necessities might dictate.

The supply of labour in a trade may be greater at one time than another — indeed for a time far exceed the demand for it; and yet that state not be its permanent condition. In other words the trade might be for a good while “slack.” If a reduction of wages took place during this period, this reduction would be very likely to remain when the trade got “busy,” the supply of hands not being then greater than the demand; and yet the temporary “slackness” in itself would by no means be

¹A “Sweater” is one who takes out work to do, at the usual rate of wages, and who gets it done by others at a lower price; the difference, which is his profit, being “sweated” out of those who execute the work. Hence the term “Sweater.”

— WAGES.

adequate to compel this reduction, and ought not to have produced it. The undue competition among employers, bidding each under the other, intending to make up the difference out of the wages of their men, —not from any compelling necessity in the trade, but from mere rivalry, —would inevitably cause a reduction, which, if not checked, might extend to the whole; not again from any compelling necessity arising from over-supply, but from taking advantage of the immediate necessities of their men being greater than their own. Hence the formation of Trade Societies, which become a necessity, to adjust the bargain for the sale and purchase of labour.

In all bargains, the buyer wishes to buy as cheap, and the seller to sell as dear, as he can; but their interests, all being exchangers, and each, from the highest to the lowest, depending upon this principle —exchange— for his position in life and even for his daily sustenance; all things being equal, their position is not one of opposition, but of mutual interest; and neither the one in wishing to get as much, nor the other in wishing to pay as little as possible, can injure the other. But if, as alluded to above, either party possess an advantage over the other in the bargain, this position of mutual interest is changed into one of opposition, in which the weaker party is sure to be deprived of some proportion of what is justly due to him. In this position as bargainers for the sale and purchase of labour, stand the employer and employed. Singly the employer can stand out longer in the bargain than the journeyman; and as he who can stand out longest in the bargain will be sure to command his own terms, the workmen combine to put themselves on something like an equality in the bargain for the sale of their labour with their employers. This is the *rationale* of Trade Societies, which is very clearly indicated by Adam Smith in his “Wealth of Nations.”

— *WAGES.*

II.—TRADE SOCIETIES.

The object intended is carried out by providing a fund for the support of its members when out of employ, for a certain number of weeks in the year. This is the usual and regular way in which the labour of the members of a Trade Society is protected, that the man's present necessities may not compel him to take less than the wages which the demand and supply of labour in the trade have previously adjured; strikes, which we shall hereafter notice, being only resorted to on extraordinary, and, generally speaking, most unusual occasions.

As the object of combinations is thus to correct the disadvantage of position as bargainers with their employers, and as the very element of their existence is public spirit, being held together only by a principle of honour to support each other for a perfectly legitimate purpose, they always comprise not only the best workmen, but best men in a moral sense that are to be found in the trade. This is stated, simply because it is a fact, which has been acknowledged by those who are inimical to trade combinations. As the social position of workmen depends entirely upon the wages they obtain, it is felt by the majority of them to be a sacred duty to adopt this means of protecting their wages. There is no state so abject, and no tyranny so hard to be endured, as that which results from the seller being completely at the mercy of the buyer. It is to avoid this state so detrimental to themselves, and so advantageous to the employ-

—TRADE SOCIETIES.

ers—at least so thought by many of them,—that working men combine, and that their combinations, according to the “Edinburgh” reviewer, contain “about 600,000 members, commanding a fund of £300,000.” How this fund is disposed of we shall hereafter allude to. This is the reason, at which neither he nor any man need “for the twentieth time wonder,” that induces “intelligent workmen” to form themselves into Trades’ Unions; and not, as stated by the same reviewer, after about four pages of vague denunciation and foolish wonder, to “intimidate,” “to stint the action of superior physical strength, moral industry, or intelligent skill,” or “to apply the fallacies of the protective system to labour;” their object, on the contrary, being to ensure the freedom of the principle of EXCHANGE with regard to labour, by, as before observed, putting the workman in something like an equal position in the bargain for sale of his labour with his employer. If in doing this they sometimes—err as who does not?—such error does not invalidate the propriety of such a course.

The same reviewer, in a page which, though placed at the commencement, seems to have been written as a kind of summing-up of the whole, asks his readers: “Can it be possible, then, that in Great Britain, too, there is an *imperium in imperio* as oppressive to those whom it comprehends as any secret society on the Continent, enforcing mysterious laws and arbitrary obligations by the hands of irresponsible authorities, in defiance of the great natural laws of human society? Recent events have prepared our readers to take some interest in the inquiry whether the fact is so or not. When they have learned as much as can be known of the Trades’ Unions of England, they may judge for themselves whether any existing government in Europe from Constantinople to St. Petersburg or Paris would venture to exercise so stringent a rule over its subjects as a large proportion of our working

men submit to from men of their own order. Under the system of irresponsible government, which strives to subject the labour market to its dominion, the characteristic freedom of the English citizen is lost. Hundreds of thousands of our countrymen are unable to say that each man's house is his castle; that his labour and its rewards are his own property, and that 'live and let live' is the rule of the society in which he dwells." —P. 528.

The sum and substance of the above, divested of its gloss, is that Trades' Unions are, 1st, secret; 2nd, irresponsible; and 3rd, coercive.

1.—SECRET.

With respect to the "mysterious laws and arbitrary obligations," we have only to say that the proceedings of Trades' Unions are no more secret than those of any other societies, to which working men and others belong. When the reviewer talks of "Continental nations from the Mediterranean to the Volga, and from the Black Sea to the Channel, being honeycombed with secret societies," and insinuates that it is a mistake in Englishmen to congratulate themselves that everything with them is "open and above board," and that they have no "spies," "enforced dumbness," and "*surveillance*," while Trades' Unions exist among them; he insinuates what is false. The insinuation, for he does not venture to state it openly, without doubt, gives strength to the alleged tyranny, but it is untrue. That the proceedings of Trades' Unions have been unknown is true, but they have only been unknown because they have been considered by the general public, and therefore by the press, too obscure and insignificant to deserve attention. Nothing would serve the cause of the working classes more than a continual ventilation of their proceedings by the public press; it would tend to procure for them

a greater meed of justice than they have hitherto found, and, what is better, it would tend greatly to preserve them from error. There is not a more salutary check to injury from your own proceedings, as well as from the proceedings of your opponents, than publicity through the press. This, however, has undergone a change for the better, during the last few years. In the “builders’ dispute,” as far as the men’s proceedings are concerned, it has ceased altogether; the secresy being entirely on the side of the Masters’ Association.

We have now before us 227 quarto pages, double columns, for the most part in the *small* newspaper type, of the reports of the proceedings of the men, leading articles, &c., on this dispute, cut from the newspapers, chiefly from the *Times*, *while that paper reported them*, and when it ceased to do so, from the *Morning Advertiser*, and other papers. This, in the usual type (not the largest), would make a quarto volume of 671 pages. Where, then, is the secresy? The masters’ proceedings, in their Association, have been secret, but not the men’s, in their “Trades’ Union.”

There are no “secret societies” as “Trades’ Unions.” The attempt to make them so, in 1834, was utterly abortive, from the refusal of the trades generally to become so. When it -was illegal to combine, they were necessarily secret, not from any inclination, but from the force of the adverse law, which compelled secresy. This enforced secresy generated its usual train of evils, and in some cases the administration of oaths to members. When the laws against combinations were repealed, these practices, and the secresy out of which they grew, ceased, which ought to have been known to the reviewer, before he attempted to write on the subject.

The ordinary proceedings of a Trade Society are of course too uninteresting for public attention. But in disputes, which

in the case of the builders, have occupied so much of the attention of the public, whose fault has it ever been that they have not obtained the same publicity? Certainly not the men's. During the strike of the masons at the building of the two Houses of Parliament in 1841, the greatest difficulty was experienced by the men in getting their statements into the newspapers; in fact, they were obliged to resort to placards and printed bills, because the newspaper press refused to publish them. The masters found immediate publication in the first-class newspapers for their statements, but the men could not. The present writer had the greatest difficulty in getting a report of an investigation into a case alleged by the men and denied by the masters, relative to this dispute, into a popular newspaper, that now would publish such a report immediately. He with his colleague had to wait upon the editor, who had previously refused insertion; and at last it was inserted—as he believes—through the intervention of one who was influential in the management of the paper. We go into this detail to show that it has never been the fault of Trades' Unions that their proceedings have been unpublished to the world. But it is said the Committees are secret. It is true their proceedings are not published, but does that constitute a secret Committee? If so, then all meetings of men appointed to transact business, from the Cabinet Council downwards, including all railway and parochial Committees, are secret conclaves. But these are not secret, because the names are known of those composing them; the first-named to all the nation, and the rest to all whom they concern. And, in like manner, the names of those who form Trade Committees are equally known to those who appoint them; and, therefore, are not secret.

2.—IRRESPONSIBLE.

The “irresponsible authorities,” by whom we suppose are meant the President, Committee-men, and Secretary, of each and every Trades’ Union—if the reviewer was so ignorant of such matters as not to know it before—these are invariably elected by the Trades’ Union to which they belong, to which they are responsible for what they do during their term of office, and who are not slow to find fault and censure them if they do anything displeasing to the body they represent. If he did not know this, the commonest sense of propriety and regard for truth ought to have restrained him from writing on the subject until he had obtained this information. But then there could have been no “slashing article” the dull prose of truth would have prevented it. As the responsibility of the “authorities” of Trade Societies will be further shown as we proceed, there is no need here of saying more.

As to the “characteristic freedom of the English artizan being lost” by this “system of irresponsible government,” the reviewer unconsciously, from his ignorance of the subject, has, by the *reductio ad absurdum*, refuted himself. He describes a state of things which has no existence. We should no more have believed this passage about working men, not knowing whether their “labour and its rewards were their own property,” and the rest of it, applied to ourselves as workmen, had we not been told, than we should have known that the French writer meant Shakspeare when he called him the “divine Williams.” We have shown this passage to several of the “hundreds and thousands of our countrymen” here described, who have one and all, with much laughter, in the most expressive vernacular, and with vigorous expletives, denounced the reviewer as the “biggest of the unwise,” and the greatest of the perverters of truth, that they

ever heard of. When any matter, like the present, has reached its last point of absurdity, there is no more to be said. We therefore take leave of it, especially as our object is not to criticise the ignorance of the reviewer, but to state the truth; and, having disposed of the secresy and irresponsibility—two such powerful adjuncts to the alleged coercion “which strives to subject the labour market to its dominion”—we will now proceed to consider the alleged tyranny or coercion itself.

3.—COERCIVE.

As the “coercion,” apart from acts of intimidation and violence, said to be exercised by Trades’ Unions, has been the theme of accusation, invective, censure, or expostulation, according to the mood of the speaker or writer, with the unanimity of a chorus, from Lord Brougham down to Mr. Buxton, we hope to be excused if we enter somewhat largely into the subject. It is not only alleged to induce men to belong to the Union, but to exist everywhere, in all that Trades’ Societies do, or intend to do. Now, it is the tyranny of the majority over the minority; then, it is the tyranny of the leaders; or, again, a general undefined tyranny which pervades the whole body; but always tyranny and coercion. According to the “Edinburgh Review” the tyranny is general, undefined, but pervading everywhere. The *Times*, Dec. 9, 1859, gives it to the leaders in the following terms:—

They strike at the bidding of men who deem it necessary to assert a control over the destinies of trade by making a terrible example of employers and employed as often as their secret and imperious commands are disobeyed. Nor does their fault consist in taking too much, but rather in taking too little, interest in their own affairs—in permitting themselves to be made mere tools and instruments of the will of others in matters in which it is, above all things,

incumbent on them to judge for themselves, and in surrendering their natural liberty, tamely and ingloriously, into the hands of an ignorant and inquisitorial despotism.

Mr. Black, taking up the subject from the “*Edinburgh Review*,” the said reviewer having used the word “excommunication,” says:—

But it is not by illegal violence alone that personal liberty may be encroached upon; there are other means of intimidation that may be as effectual, or even more so. The Pope, by the threat of excommunication, was able to control the most powerful sovereigns. A similar threat is one of the most effective instruments in the hands of the committees of the Unions. When they order a strike, he would be a bold man who would preach the right of private judgment, and act upon it in opposition to the commands of the secret committee; he would not only be shunned by all his companions, but reproached and denounced as a snob, a nobstick, as unfair, and insulted in other opprobrious terms. By cajolery, molestation, and threatening, the combined leaders strike a general terror into the whole community.—P. 21.

The “*Quarterly*” reviewer, having more sense, does not harp so much on this string.

To Mr. Black is due the merit of being definite; he not only states what is done, but the manner of execution. And we have no doubt but that he has, in the case he has supposed, stated the true impression on his mind, as derived from the “*Edinburgh Review*,” and the statement of various speakers and writers on the same side, who are considered authorities on the subject. We will, therefore, analyse it. The “excommunication” is relative to a supposed strike, and he assumes it to be complete and effectual. Now, how can a man be ejected or driven from a community, with “reproaches and denunciations,” “shunned even by his friends,” unless by the active co-operation of the

community itself? and how could such co-operation exist by the community, unless such “excommunication” had its full and hearty approval? No cajolery can make men, and especially working men, do what they have no mind to, and, if the community are willing to eject one of their body so vigorously as here described, with “insult” and “opprobrious” terms, there needs no “cajolery” to induce them to do so. As to the committee, who are as one to fifty, or more, attempting to intimidate the general body to do such a thing by threats, it is too preposterous for argument. Mr. Black here describes the tyranny of the majority over the minority; and not, as he states, the tyranny of its leaders over the general body. His own case proves that he is entirely mistaken in this respect. It may be, in such a case, that the leaders are compelled to act in obedience to the general voice, as has been the fact, hundreds of times, with more important bodies than Trade Societies. So far from the fact being, as the Times and Mr. Black suppose, that the Committees of Trades’ Unions are the agitators and leaders in strikes; it oftener happens than not that they prevent them, by soothing down the angry feelings excited by what the members of their Societies have considered unjust treatment, from foremen or employers. There, however, exists some cause for this error. When men have been asked, by employers, why they have struck or have refused to work for a certain price, they too often, from the fear of compromising themselves, lay it all to “their mates,” or to “the Society,” or to its “Committee,” when perhaps some of those very men have been foremost in setting forth to the meeting of their general body, which unanimously agreed the strike should take place, the absolute necessity of so doing. But, although this cause for error does sometimes exist, it is not the less a great mistake to suppose that the working class are the mere “tools and instruments of the will of others,” or that they “surrender their natural liberty” into the hands of their leaders.

Those leaders, as before observed, are in all cases elected by the general body, to carry out its views, and therefore cannot be secret. Nor can they do anything against the will of that body. If they were to attempt to do so, they would soon cease to be its leaders, and, consequently, could not exercise “despotic” rule over it.

But it may be asserted that, granting this, the rule of Trades’ Unions is nevertheless the tyranny of the majority over the minority. To which we reply, where is it that this kind of tyranny does not exist? Mr. Black tells us that there are no “Trades’ Unions” or “Strikes” in the United States of America, and we believe he is nearly correct. Where, according to M. de Tocqueville, is the tyranny of the majority over the minority greater than in those states? To come nearer home, what is the “world’s dread laugh” but the tyranny of the majority? What is “public opinion,” so potent, and so fatal to those who stand in opposition to it, but the voice of the majority against the minority? who never fail to denounce it as tyranny; and who generally get laughed at for their folly by the same “public.” If this be a crime in Trades’ Unions, it is a crime of which the *élite* of English society are equally guilty; and not only the *élite* but every grade downwards from it to the working classes. Out of many instances of the way in which it sometimes acts that might be given, we only need mention the following:—Mr. Burke, after his expression of opinion on the French Revolution, was, to use his own words, “excommunicated by his party,” lost his seat in Parliament, and for his whole life after was reduced to political insignificance. Lord Chancellor Yorke, who took office at the earnest request of the King (George III.) from being supposed by such taking of office to have betrayed his party, was proscribed by that party; which he took so much to heart, that he lost his reason, and died by his own hand.

Sir Robert Peel was considered, by the party to which he had for years belonged, to have betrayed it, though it was all the while known that he had a perfect right to change his opinion; and the event, during his life, proved that it was most beneficial to the nation that he had done so—yet with his party he lost caste; and though he had the approbation of the general public, his public life was embittered to the end—even when the aggregate majority was with him—by the most bitter attacks that ever assailed a public man; against which the approbation of the general majority was of no avail, such approbation being expressly because he had shattered to pieces the favourite policy of his former party; or, to use its own words, betrayed it.

Messrs. Bright and Cobden, during the late war with Russia, thought proper on the peace question to express what was known previously to be their sincere convictions, and which they had an undoubted right to express, but which were opposed to what was at that time considered to be the public weal; in short, to the almost wishing success to the enemy with whom the country was at war. All their past services were forgotten, they both lost their seats in Parliament, and, during that war, their influence as public men; and would again under the same circumstances suffer the same loss, supposing they should, which is very doubtful, ever regain the confidence which the public formerly reposed in them. Pausing for a moment on this phase of the subject: do either of these reviewers, or any one else, require to be told, that a state of combination, whether it be of a political party or a Trades' Union, supposes a united action which is inconsistent with dissent?—or that there are men everywhere, who, after the whole of the fellows— themselves included—have agreed to a certain movement, have frustrated it by an opposite course of action? Have not many such been denounced in both reviews as having “betrayed their party,” and

“their cause?” Without doubt such men have a right to do as they like, and to be protected from violence and insult; but it is too much to expect that their fellows should receive them with affection or regard. Do what you will, talk how you like, such men will always be considered by their party, whether it be of the highest or lowest sections of the community, as infamous, and treated accordingly by the majority, whose cause they have betrayed. If this be “tyranny,” then it will never be purged from the working or any other class of society, while men are human. When, if ever, they become angelic, it may be different; but then there will be no traitors.

But to return. What is the end and aim of the “Quarterly and Edinburgh Reviews” as far as politics are concerned, but to excite the public opinion against their opponents?—and the greatest success they hope to achieve is to obtain the general voice against those whom they denounce, or, in short, to create this “coercion” or “tyranny” of the majority against them. What is the “Edinburgh Review” now doing, but, Tight or wrong, endeavouring to excite public opinion against Trades’ Unions? What is the object of Mr. Black’s lecture and Mr. Buxton’s letter—both compiled from the two reviews in question—but to do the same thing? But we shall be told they all think they are doing right. Do they? We should be glad to be informed who does not when thus employed? But, if they think they are doing right in thus invoking public opinion, can there be a more profound acknowledgment of its power, and of submission to its voice, than such invocation? It is the acknowledgment of a superior power by appeals to it. If, then, all in their turn acknowledge its power by invoking it, as a rule to which all must submit, how can it be a degrading tyranny when it exercises its force among working men?

But what do they want public opinion to do, when all in

their turn invoke it, but to bring its force to bear against their opponents?—to bring, if successful, what those opponents would most surely call this tyranny of the majority against them, with all its irresistible forms of coercion? And this is deemed by all parties not only legitimate and proper, but in the highest degree commendable. Is it, then, only when this formidable power produces the same result among the working classes, that, in the opinion of this reviewer and the rest, it is tyranny and coercion? Take the question as it is put by Lord St. Leonards, in his letter to the *Times* of December 13, 1859, and the same result will follow—namely, that it is by the opinion of the majority that Trades' Unions exist—who are said in these unions to coerce all the rest—that is, the minority. His lordship, as far as we can understand him, wishes to put an end to Trades' Unions, and of course describes their action as most unwise and tyrannical. He says that, "If a law were to be passed, placing the free workmen under such a rule, we might expect an insurrection; and yet vast masses voluntarily place themselves under a yoke which they would resist in the shape of authority with all their energies." What are the vast masses here alluded to, but the majority? And if they elect to place themselves under what his lordship is pleased to term a "yoke," he may rest assured that they have their own good reasons for doing so, and do not require, however well intentioned, the commiseration of anyone. Here, as in the case put by Mr. Black, to suppose that the "mandates" of the committees, &c., would for an instant be regarded by the general body comprising the Trade Society, unless those "mandates" had previously had their sanction and concurrence, is too ridiculous for argument. These officers and committees, once more, do not make laws for the general body, they are made by the general body itself in all cases; and if it assigns a discretionary power to its officers, it is because it—namely, the body at large—think that the best course to pursue. It seems to

be forgotten that working men are not so “handy” with the pen as lawyers’ clerks, and therefore the real fact—namely, that it is better to leave to the discretion of the committee the dealing with cases that may arise, than to make rules concerning supposed cases which might, in practice, be wholly inapplicable—is not believed. But, instead, alarm is taken, or pretended to be taken, at the “irresponsible power” of the committees. Never was alarm more groundless. Only let any committee or officer act in opposition to the wish of the general body, and, as before said, they would speedily find themselves relieved from “the cares of office.” But why is all this care for the “vast masses?” They have never, as we have heard, complained of the “yoke” under which they are said to be bowed down by an “irresponsible and secret tyranny.” No complaint of theirs has evoked all this sympathy. Loud have been their complaints of the tyranny of the master builders’ “lock-out,” and large have been their contributions to resist it. But not a word against this “yoke,” so feelingly alluded to by his lordship. What is the reason of this? It cannot be because they do not complain when they see a reason:—the masters’ “dlock-out,” for instance? What can be the cause of this silence? We will tell his lordship and the chorus of commiserating reviewers, lecturers, letter-writers, and others. It is because they, that is, the “vast masses,” believe that by their organisation—“yoke” his lordship is pleased to term it—they obtain a fair exchange for their labour, which it would be impossible to secure singly as individuals: in other words, that they obtain higher wages in combination than they could if they were not; and they are right. Take the engineering trade, in illustration. In Glasgow and Newcastle the custom is, not to belong to the Engineers’ Society; in those two places the wages are low compared with their rate in those districts where the custom is to belong to it. And even in those two places the men who do belong to the society obtain a higher rate of wages than

the non-society men. Such instances might be multiplied in every trade. It is, therefore, a matter of surprise that his lordship, knowing, as he does, what men will endure, what risks they will undergo, for increased remuneration, which, as he knows also, they would do for no living man,—that he should think it extraordinary that the working classes should “voluntarily place themselves under” this “yoke,” even at his own estimate of it, to secure the same thing for themselves.

But all this points with increased force to the fact, that it is the majority, the “vast masses” who determine to combine, and who in combination decide for themselves what course they shall pursue.

Does his lordship, in alluding to “tens of thousands” of men being suddenly deprived of work—as if they had been struck by paralysis— allude to the builders’ dispute? If so, he should remember that Avas the act of the master builders by their “lock-out.” To this, however, we shall refer elsewhere. Having thus shown that there is no “coercion” necessary to induce men to combine, but that of the “public opinion” of the class who combine; and that trade combinations are neither secret, irresponsible, nor their rule dependent on the will of their leaders; it remains only to notice the charges that workmen “coerce” all in their trade to belong to the trade society

Whatever may have been the practice formerly, Trades’ Unions are not now generally charged with acts of physical violence—acts which we deprecate and abhor. On this point we are in perfect accord with both the “Quarterly” and “Edinburgh” reviewers, and those who have compiled speeches, lectures, and letters therefrom. Wherever such acts occur, they are a “heavy blow and great discouragement” to trade societies. Leaving these, as things which happily have now passed away, we need only say in reference to this, that there is no other coercion than

that of the public opinion of the class to which workmen belong. Although we know of many instances to the contrary in our own trade, to a certain extent men in a society shop *are* expected to belong to the society, for the very natural reason, that, as it is believed wages are kept from falling below the demand and supply rate, by the contributions of men who belong to the society, those who do not belong are considered in the light of those who wish to enjoy an advantage without contributing their share to sustain it; nothing being more certain, in the minds of the workmen, that, but for the combination, the immediate necessities of the men would be immediately taken advantage of in some part of the trade, which would speedily produce the same result throughout. The predatory instinct belonging to our nature would in these circumstances ensure this result. The men, therefore, naturally expect that every man should pay his quota, for an advantage which he enjoys in common with the rest. And Ave should be glad to be informed how, in these circumstances, it is possible to be otherwise? It may be considered—and especially by those employers who find it most advantageous for their individual profit to deal with the men singly—very wrong for the workmen to act thus. But it is for this very employer's reason that the men are anxious that all should be in combination. In fact, whatever is deemed to be the right and proper course for the welfare of all, by the majority of a community or body of men, and adopted by it in the aggregate, will be sure to be considered by that community as the duty of all to support and carry out. In fact, it is its public opinion—and how potent public opinion is need not be repeated. And if that course involves a money payment, he who refuses or attempts to shirk that payment will always be, let him be of what class of society he may, “coerced” by its public opinion. It is so everywhere. It may be very wrong, but if it be, men of every grade of intellect and position in society have always done so, and, without

doubt, will continue to do so to the end of time.

But this opinion, in most places, is so universal among working men, that in point of fact there are none to “coerce;” whether actually in the society or not, scarcely a man doubts the propriety of belonging to it. And where, as in some few districts, it is otherwise, the men do or do not belong to the society, as they please, and consequently there is no “coercion.”

In our own trade those out of the society are, for the most part, either inferior workmen, employed on inferior work at reduced wages, or those who have belonged to it, and been erased. Of these last some left because they did not wish to pay to it, or indeed to anything else that they could avoid; and the rest, by far the greatest number are those who have been erased for non-payment through their unfortunate habits of intemperance, which left them no means of paying. The first-named, from their inferior ability as workmen, seldom come to a society shop; the others, when they obtain work in a society shop, generally join, or rejoin; and, as the result of nearly twenty years’ experience as Secretary, the present writer can safely affirm that in no case have those who have so joined, or rejoined, expressed the slightest complaint of any “coercion;” on the contrary, where there has been any expression at all, it has always been that they had been out of the society so long, or had not joined it sooner. The practical fact is, the chorus of assertions to the contrary notwithstanding, that the belonging to the society is never by working men, taken generally, deemed a matter of “coercion” at all, but, as a thing for the protection of their wages from undue reduction, highly advantageous for them to do.

UNIFORM RATE OF WAGES.

Before discussing this topic, it is necessary to state that the *men* do not contend for an “uniform” rate of wages. All they contend, or ever have contended for, is a “*minimum*” rate of wages, leaving the employer to pay for superior skill, or working ability, as much more as he pleases, or the man can obtain. Indeed, as great skill or superior working ability must, from the nature of things, be always rare, what is termed an uniform rate can only mean what is applicable to the general run of men, and in point of fact a *minimum* rate as regarded by the men, and an “uniform rate” as regarded by the masters.

To have an “uniform rate” of wages is said to give an unfair protection to the unskilled workman. The “Quarterly” reviewer states it to be “a most dangerous thing for workmen to proclaim that the idle and unskilled shall be paid as the industrious and skilled.” This reviewer shows much candour throughout his remarks; he errs, however, in this matter, from receiving his impression from only one side of the question.

It is quite true that in most trades, where the work is paid by the day, an uniform rate of wages is paid; but the above result, which has been so much denounced, certainly is not, and never was, the intention of such uniform rate or the reason why it was established.

It should here be observed that where the work in any trade is paid for by the “piece” at so much per job—as, for example, among the compositors, the type, in London, is for the most part composed at so much per 1,000 letters—there is no uniform rate *received* by the workmen. There is generally an uniform rate, or nearly so, of the price of the various jobs; but, as workmen of different quickness and skill will do more or less work at the same price per job, their wages may very materially differ in

amount.

But in work by the day there is generally an uniform rate, which is adjusted in the first instance by the principle of demand and supply, which operates like the circulation of the blood without anyone scarcely being aware of it, and the result is a settled rate of wages, which becomes recognised by both employer and employed as the standard of wages for the general run of workmen in the trade. And it must always be borne in mind that a rate of wages, in any trade, never becomes what is termed the uniform or standard rate, unless it has had the full consent—very often by special agreement—of the employers of that trade. It is quite true that some men are able to earn, and do earn, more than others. As the uniform rate is generally made for the general run of men, some men will be worth more and some worth less than its amount. Then the question returns, why not pay the one more and the other less? This is sometimes done, when, of course, the rate ceases to be -uniform. But where the uniformity, as a general practice, is kept up, the reason usually is—that the employer likes to reap the benefit arising from the man being worth more, and is also afraid that if he increased this man's wages, he would probably be called upon to raise the others; and the men, on the other hand, would be against the man who was not worth the regular rate taking less, lest the others might be reduced to it. And it must be admitted that, so prone are men to take every advantage in their own favour, the apprehension of each class respecting the other is very likely to be correct. But it will be seen in the sequel that this uniform rate operates in a way which is anything but a protection to the idle and unskilled. Employers never fail to retain in their employment the best workmen, and to discharge, at the first opportunity, those whom they consider inferior. In the course of time, by this process, they will have in their employ few but

what may be termed superior workmen, to whom they will pay by the operation of this “uniform rate” of wages only the wages of the general run of workmen. Digressing for a moment, as far as we can learn, this was actually the case with the master builders, previous to their “lock-out.” They had in their employ the *élite* as workmen of their respective trades. Hence the great loss they have sustained by their “lock-out,” which may be thus estimated. The number locked out was under 11,000,¹ skilled and unskilled. The master builders, when there was reason to believe they still wanted more hands, stated, in a return by their secretary to the *Weekly Mail*, of Nov. 13, 1859, the number in their employ to be upwards of 16,000 (up to Nov. 5, 1859), to whom they would certainly not be paying less per man than they were previously paying the 11,000 for doing the same quantity of work, involving a loss, if we suppose the average wages of each to be 25s. per week, of upwards of 6,000 a week in wages alone. But to return. Inferior workmen, it will be seen, by the operation of this “uniform rate” are not protected, its result being to give the employer the benefit, as described, of having superior workmen at the ordinary rate of wages. Indeed, it is very seldom that the employers complain of this; we might almost say never, except when it is intended to reduce wages by what might be termed “working the uniform-rate dodge,”—that is, assuming the rate of the general run of workmen to be that which should only be paid to the very best workmen. This is often done when wages are sought to be reduced. One instance, which will illustrate every other, we select from the Par-

¹This is the number stated by Mr. Potter and the Building Trades Conference. Wishing to be correct, Mr. Wales, Secretary of the Master Builders’ Association, No. 8, Great St. Helens, was written to, requesting him, as a great favour, to state his estimate of the total number of men locked out, skilled and unskilled. As Mr. Wales did not reply, we have no means of collating the above number with what that of the employers might be. However, from various circumstances, we have good reason to believe the above number to be correct, and our estimate of the loss very much understated.

liamentary Report on Combinations of Workmen, 1838. Mr. Carolin, master builder of Dublin, who, through his reduction of wages, was involved in serious disputes with the workmen, after evading, by a reference to piece work, the question put by Mr. O'Connell (7394), "Do you pay any man more than the minimum stipulated by the body?" "Admitted (7348) that he paid 27s. a week to his best men and so downwards." By the evidence of Mr. Eaton, also a master builder of Dublin (7646), the regular wages of the same workmen (carpenters) were 4s. 8d. a day, or 28s. per week, which he paid, "making no difference between superior and inferior workmen," "which he thought fair between master and man," but he added, which illustrates what we have stated, that "he endeavoured to select the best workmen." The one who did not wish to reduce wages sought and obtained the fair advantage which the uniform rate afforded; while the other, whose only object was to reduce wages, complained of this rate, and gave it only to his best hands. And this is the usual course those who complain of the uniform rate pursue. The reduction of wages is generally their object, and the uniform rate is the mere pretence which they use to effect that object in the way described.

Indeed, so far from placing "the competent and the incompetent on the same level," this "uniform rate" has been bitterly complained of, as excluding the incompetent altogether. At the late Bradford meeting one of the speakers gave as a reason against Trades' Unions that as he was not able to earn the usual rate, and as the Union would not allow any of its members to work for less, while he was a member he could get no employment, and so he left it. In "Chambers' Journal" for April, 1856, this complaint is urged with great energy; and Sir J. K. Shuttleworth, chairman, at the discussion at Bradford on "Trades' Unions" in reference to the above statement, said, "that noth-

ing was better attested than that Trades' Unions did coerce their members in this matter, and that unless they purged themselves from this taint they would not meet with the sympathy of the public." Knowing as we did that this "uniform rate of wages," which, by the way, is never in any trade without numerous exceptions, and when the work is done "by the piece" does not exist at all; is never in practice a source of difficulty, as an employer is sure to dismiss the workman who does not suit him—and we have known excellent workmen so dismissed, as not being used to the particular kind of work the employer had to execute, though first-rate hands in their own department; and knowing, also, that this "uniform rate" is rarely complained of by employers, except they wish to reduce wages, or by workmen unless they are arrant bunglers; we were not a little surprised to hear of it as a matter of grave complaint. It becomes therefore necessary to show, in respect to workmen, as we have previously in respect to employers, how those who thus complain are affected by this uniform rate, and what kind of workmen they are.

A man may not be worth the regular wages, either because he is slow in doing his work, or because his work is inferior. In the first case, where work by the piece is the custom of the trade, there is and can be no difficulty in the matter, unless, indeed, he be so very slow that no employer will give him room in his shop. Where, however, work in a trade is done by the day, there may be a difficulty; still if the man's work be well executed, he is sure, in the end to get employment where quantity is not so much regarded in the work as its quality. But if the man's work be inferior, there is indeed a difficulty, but that difficulty is not in the regulation of the trade, but in the man himself. If there were no regulation as to the rate of wages, such a man would be restricted to those shops only where inferior work was done,

and, if his work were very inferior, even these would be closed against him; for what master would employ a man to spoil his materials?

This kind of incompetence may proceed from imperfect instruction, in which case the obvious course for the young man is to engage himself as an improver; in many cases, however, that we have known, even this has not been necessary. Where there is a natural aptitude to learn, the man acquires more skill at every shop he works at, and ultimately becomes as competent as the best. Where, however, the incompetence from inferior work is the result of inability to learn, and not for the want of proper teaching, there is no remedy; indeed, such an one has no right to designate himself a workman of any trade, if he is not able to work at it in the style of a workman. But here, again, the difficulty is not in the regulation, but in the man himself. These, however, are the men most likely to complain of this regulation. They will lay their being continually out of employ to any cause rather than to their own bungling execution of the work entrusted to them to do; to their not being allowed to work for less than the standard wages; or to anything but the real cause—their own thorough incompetence.

The reason why all men in a trade are supposed to be competent to earn and to receive the standard rate of wages is, because, first, the fact is, that, taken as a whole, they are all competent, the exceptions being too few to be appreciable; and, second, because, from the predatory instinct referred to above, which prevails equally among workmen as among masters, some men, being thoroughly competent, would pretend incompetence, that they might supplant their fellow workmen by offering themselves for less than the regular wages. In our own trade, however, where men from age or obvious inability are unable to earn the regular wages, there is not, nor ever has been, any objection

to their receiving less.

In reference to the complaint that this uniform rate stints the action of superior skill or physical strength, such complaint applies, wherever it justly exists, to the employer as much as to the employed. Workmen who are remarkably quick are sometimes paid more, but not always, as the employer mostly likes to reap the benefit of such quickness himself; which generally results in the quick hand subsiding into the regular quantity of work. This is often made the ground of great complaint against workmen that they discourage skill and celerity in their work. The complaint, however, often should be reversed; the workman might justly reply that he gets no encouragement. If he were, from rare physical development, to do double the work of another, he would be paid no more, or, if he were, it would be by no means in proportion to the additional work he got through. This is the true reason why workmen are accused of not wishing to do more than a certain quantity of work in a day, about which the master builders have been so eloquent and so denunciatory. The “*Edinburgh and Quarterly Reviews*” have in this matter taken up their parable against the working man as advocates of the employers. But why should the workman do more than the regular quantity of work if he be not paid more? Would either of these two reviewers write two sheets for the price of one? To expect them to do more is to desire virtually a reduction of wages, which we have before shown to be at the bottom of all these complaints of the uniform rate of wages.

When a trade is unusually brisk, it may be that there are no hands to be obtained but the inferior workmen, who from this cause have, until then, remained unemployed; these receiving the usual rate does not alter the case, as it is with them a question of simple demand and supply, which, in these circumstances, would determine them to be worth it. Many complaints

admit of this solution, while nothing is said, when things are exactly the reverse, of superior workmen being obtained—from the same cause reversed—at the ordinary rate of wages.

But, after all, we believe both employers and employed are generally satisfied in respect to this “uniform rate,” as it exists in their respective trades. During a strike, or dispute, each will say hard things of the other, as men in such circumstances will always do. Apart from this, if there be men, who will not do the proper quantity of work, there are exacting employers who, if their men did double the usual quantity of work, would grudge paying more; but these do not represent the great body of masters or men in any trade. They are exceptions, of whom it may justly be said, in reference to their respective demerits—to use the vernacular—that “there are six of one, and half-a-dozen of the other,” each naturally, and most surely, causing the result of which they both complain.

But, it is asked, why cannot a man sell his labour for what he likes, as a shopkeeper tickets his goods under the price of those of his neighbour? They do not interfere with each other, and why should the workman? The shopkeepers here alluded to, Ave beg to reply, are not obliged to be always together, and, therefore, the ill blood, which is often intense, does not cause interference. But, in wages, the matter assumes a very different aspect, as will be seen by putting a case. Suppose, in a shop which employed twelve or any other number of men, whose wages were 30s. per week, a man was to be engaged who thought proper, without being asked, to work for 25s. per week; not because he was deficient in skill or quickness, but simply because he chose to do so; or, if the work were done by the piece, to offer to do each job at a corresponding reduction. Would not the rest be very likely to see, as the result of this, a near prospect of their own wages being lowered to this standard, and, in con-

sequence, regard the underworker as a “curry-favour” and a sneak, who sought unfairly to supplant them, and treat him accordingly? It may be very true, that this man had a right to ask what wages he liked for his labour, even to half the above sum; but, while men are human, Trades’ Union or no Trades’ Union, he would not be able to do so without feeling his position to be highly disagreeable to himself. We should like to know how those who put the above question would behave if they formed the twelve, or a part of it, above supposed?

But it may be replied, this is exactly the reason why Trades’ Unions are objectionable; they unduly interfere with the natural liberty -which such a man as this, for instance, undeniably possesses to work for what he likes. Undoubtedly they do. But the cause of this interference is, not in the Trades’ Union, but in the natural repugnance which fill men feel to being supplanted, and by such means either turned out of their employment, or forced to work at a lower wage. It is this repugnance, which is found everywhere, that prompts the “undue interference,” which would be felt whether the men were in combination or not. Combination might be the effect of this feeling and make it more effectual, but it is not its cause. Its cause is in the common instincts of man’s nature, which can never be rooted out, nor is it proper that they should be. To suppose that it is the result of combination is to mistake the effect for the cause, which indeed, and the assigning of a wrong cause, are the two great mistakes made by the opponents of Trades’ Unions. The case is different when a reduction of wages proceeds from a falling market, or from what appears to be a decline in the trade or manufacture. The natural repugnance to such reduction here gives place to what is seen to be inevitable. Hence Trades’ Unions seldom interfere—indeed, never—unless through ignorance of the existing cause. This, however, can hardly happen, because, if the

men were ever so inclined, no strike can take place when there is little or no work to do. For it will be at once seen, that men who are already unemployed cannot “strike” from their work. When, in the case of the “Luddites” of 1812, nearly a whole trade was thrown out of employment by the sudden introduction of machinery, the disorders which followed were not the result of any Trades’ Union combination, but were riots and violence impelled by extreme poverty and hunger coming suddenly upon a large number of people; which, at any time, is likely to recur under the same circumstances, whether produced by the introduction of machinery, or any other cause.

PIECE WORK.

It has been alleged that workmen refuse to work by the piece. This is not correct. There does exist a prejudice against it by some, both of workmen and employers, but it is not general. The compositors of London, as a general rule, work by the piece, time-work being the exception; while those in the country work by the day, the exception being work by the piece. The shipwrights of the Port of London work by the job or piece, while those of all other ports work by the day. Indeed, the main objection in different trades to working by the piece is in the complaint that, when the men are found to earn good wages at it, the employer wishes to reduce the price of the work, and that it is so often made use of, as a means of reducing wages. There are, as we are informed, in the engineering trades three modes: first, by the piece at a settled price for the various jobs; second, the giving out a quantity of work, at a certain price, to one man, who gets others to do it for less, similar to the sweating system among the tailors; and, third, the selecting of a man who possesses superior physical strength and quickness as the principal

—*TRADE SOCIETIES.*

—*COERCIVE.*

of several workmen, and paying him an additional rate, by the quarter or otherwise, with the understanding that he is to exert himself to the utmost to induce the others, who are only paid the ordinary wages, to keep up to him, by which means is obtained the work of several men, up to the standard of a workman of superior working strength and quickness, for the payment, except in the case of the principal, of the ordinary rate of wages. Without any comment, this will go far to explain many of the complaints of “*stinting* the action, superior skill, and working power,” made by the employers against their men.

III.—STRIKES.

When a body of men stand out for a price which their employers refuse to give, while this dispute is pending, the position of the workmen is that of a strike. As strikes are the last resort, as they are always expensive, and as they engender mutual ill feeling, they should never be entered into without duly calculating the probabilities of success, nor until all means of amicably settling, the difference have failed. It often happens that workmen have no alternative, but either to submit to a reduction tyrannically enforced, without any reasoning on the matter being allowed, or to cease from labour. Often has a strike thus been precipitated, and ruin inflicted on employer and employed, which might have been averted by a little calm reasoning on the matter. It is the same when a rise in wages is asked by the men. Both parties are apt to view each other as enemies, and in this jaundiced view, which prevails equally on both sides—aggravated by the unconciliatory tone which is sure to result from such a state of feeling—reasoning on the subject—as the subject, considering the important results to both parties which are then pending, should be reasoned upon—is rendered impossible. The beginning of strife is like the letting out of water that might be, at the commencement, easily stopped. But if there be one thing more than another which, in their turn, both parties in these circumstances often, to all appearance, agree in throwing aside, it is the conciliatory spirit which might prevent these ruinous

—*STRIKES*.

disputes. But while strikes are always to be deprecated, because they are, for the time, a state of moral warfare, and, like all sates of hostility, productive of mutual bitterness—and because they are carried on at a loss to both parties—we are, notwithstanding, clearly of opinion, from long experience of their results to journeymen both of success and defeat, that there is no proper alternative, in certain cases, than the position of a strike.

The following extract from a very talented article in the *Builder* of August 11, 1859, which very clearly sets forth the nature of strikes, as clearly exhibits their rationale:—

Suppose a question of cotton and sugar value instead of labour value—how does the seller know whether he is selling too cheap, except by refusing to sell at all below a certain higher rate? If there is but little cotton or sugar, as of course he suspects or affects to suspect there to be, he will sell what he chooses at his own figure; but if not, he must take the buyer's price for it. Now, the fixed price about which the transaction halts is the strike of the seller against the buyer—of the supplier against the demander—and provides the only practicable means of arriving at the fair value.

Against strikes it has been often urged—

1. Their great expense;
2. That they promote the introduction of machinery, and consequently leave the workmen in a tenfold worse position than they were before.

1. It is admitted that strikes are very expensive. But the expense of anything must be taken in reference to the gain it is intended to procure, or the loss it is intended to avert. It should also be viewed in reference to its result in success or defeat.

The expense of strikes to prevent a reduction of wages, let it be what it may, is soon equalled by the amount it is intended to

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take from the men's wages. A reduction of a penny per hour—we take this sum, because in our own trade reductions have been attempted which would amount to it, but any other sum can be taken, as the case may be—in a day often hours, occurring in a trade of 1,000 men, amounts to £250 a week, or £13,000 a year.¹ This may be called a small trade. In a trade of 10,000 men it amounts to £130,000 a year;² and in a trade of 20,000 men it amounts to £260,000 a year.³ Considering the capital these sums per annum represent, it cannot be surprising that workmen are willing to incur a very great expense to prevent loss so enormous.

But suppose the men to be defeated after incurring great expense—the employers' expenses are sure to be fully equal to those of their men, besides the possible loss of business. The fact of its being often very expensive to reduce wages, prevents reductions being attempted which otherwise would be made without hesitation or scruple. Strikes, therefore, even in defeat, have a powerful tendency to prevent a future and further reduction of wages.

Besides, it might as well be urged because in a comparatively short period millions have been expended in going to law, involving often total ruin to families, loss of reason, and even suicide, that therefore no unjust aggressive claim should be opposed, and referred to legal decision.

With respect to the objection, that strikes promote the introduction of machinery: at no time is a strike needed, or indeed is there any stimulus, but the shortening of labour, necessary for its introduction, whenever it is found to answer. It may be true that “mules” and “double deckers” were introduced dur-

¹At 5 per cent., £13,000 a year represents a capital of £260,000

²At 5 per cent., 130,000 a year represents a capital of £2,600,000

³At 5 per cent., £260,000 a year represents a capital of £5,200,000

—*STRIKES*.

ing, or about the time of a strike; but these, if they saved labour, would have been used if there had been no strike. The spinning jenny was not invented in consequence of a strike; neither was the power-loom. No strike existed when the printing machine was introduced; nor was there any to occasion its subsequent improvements. Nor has been, or would, the introduction of machinery in any trade be delayed an hour beyond the time it was found to answer. “The ingenuity of our mechanics,” alluded to in the “Quarterly Review” (p. 504) has never needed the impulse of a strike to call it into action; indeed, the fact has been exactly the contrary. It has been more apt to employ itself in the making of machines which were found not to pay, than to require any stimulus, whether of a strike or otherwise, to call it into action.

Two great mistakes are often committed on both sides in strikes. The first is, in forgetting that the issue joined is simply to prove which of the two parties can stand out longest in a bargain—that the dispute is not contending as in a combat, but simply for the adjustment of a certain price for labour. It is quite true, that, where a reduction of wages results from one employer underselling other employers, and who is seeking to make up his profit out of his men’s wages, a sense of wrong is felt by the men so reduced, similar to that which prompts a man to repel an injury. And, doubtless, in such a case they think that such an employer is seeking to extend his trade by taking what does not belong to him, but to themselves. And, on the other hand, where a rise in wages is asked, which the employer feels will reduce his profits, and much narrow his operations, he also will feel the same. Nevertheless, to bring such a contest to an issue at the least possible cost to both parties, and the least injury to the trade itself, such feelings ought to be laid aside, and the dispute conducted according to what it really is, simply a

—*STRIKES.*

bargain, in which the employer is the buyer, and the employed is the seller. Both are standing out against each other's price. If the seller in this case can do without selling, and the buyer can get no labour elsewhere, the workman is sure to win. If the contrary, the employer. It is indispensable, therefore, as the dispute cannot be carried on without great loss to both, that each party should be well informed of every circumstance connected with that their true position, both at the outset and from day to day as the dispute proceeds. This, however, is not always done, and is the other mistake often committed. In the builders' strike and "lock-out," if the masters had at all studied their position as to the number of men likely to be available in the precipitated strike at Messrs. Trollope's, they would have found, if their own statements are to be depended on, that there was no occasion whatever for their lock-out, with its great expense to themselves, and suffering to their men. It was, as they expressed it, "to continue for a month, or until the Messrs. Trollope and Sons were enabled to resume their operations."

This firm, by its own statement, was enabled to resume operations in a fortnight, without having gained over a single man that had been locked out, either of their own late workmen or those of any other of the combined employers; and it was the same at the subsequent period, when they announced that they had obtained their full complement of men. And, as the lock-out, therefore, did not achieve this, it was indisputably not needed at all. Their loss of £130,000, as announced in the *Weekly Dispatch* of January 1, 1860, which, from circumstances not necessary to allude to here, is unquestionably good authority, has therefore been incurred without the smallest occasion for it. Many blunders have no doubt been made by workmen in their strikes, but none so great as this, because so entirely without real necessity.

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Both parties, however, are too often blinded by passion, to see clearly their way, and being angry, the contest is transformed from what it really is, merely of a bargain, into that of a combat. Under the influence of this excitement, the leaders of both parties are too often more intent upon setting forth the injuries which their respective audiences imagine they shall sustain, if they abate the least of their original views; or, what is more mischievous, they feel it a duty to urge that they cannot without *disgrace* modify, for the purpose of arrangement, the several points in dispute, forgetting all the while that it is only a bargain for which they are contending, in which it is the special business and duty of the seller, if he finds he cannot get his price, and the market is being, or likely to be, supplied, to take the next in value, and in no case to stand out, if he sees the market being supplied without him. Among dealers, he who loses by standing out too long is always an object of derision. This mistake is too often made in a strike. The dogged valour which has so often enabled the sons of toil to conquer in battle is not unfrequently the cause of total defeat in a strike, when, with a little address, considerable advantage might have been gained, or loss prevented. Such address has been considered cowardly and disgraceful, and the affair has ended with the loss of everything. On the other hand, the employers, under the influence of the same feelings and mistake, have often been led to refuse all adjustment or arbitration, and thereby have led, by protracting the struggle, to a much greater loss than their victory has achieved gain; and in some cases, as in the master-builders' lock-out, to immense loss, without any substantial gain at all, unless the gratification of their anger be so considered.

But, after all, the true position of employer and employed is that of amity. They are each, notwithstanding these occasional disagreements, the truest friends of the other, and neither can

inflict an injury on the other without its recoiling on himself. Capital and Labour should go hand in hand. Experience has amply proved that the Capitalist cannot injure the Labourer, or the Labourer the Capitalist, without each inflicting injury, and perhaps ruin, upon themselves.

1. THE “EDINBURGH REVIEW.”

Many of the charges by this reviewer have already been answered. It is necessary, however, briefly to notice the article. It is written, apparently, *to order*—confessedly, in profound ignorance of the subject. This ignorance may be real or feigned—feigned, in order to induce a belief that Trades’ Unions were secret societies, similar to those which “honeycomb continental nations,” abounding in “spies,” with “forced dumbness,” and “*surveillance*” and “distrust of neighbours on the right hand and left,” of which no information could be with certainty obtained. This, indeed, he largely insinuates, which is turning his ignorance, if real, to very good account. And it must be confessed, if this ignorance be feigned, that the acting, if it be not altogether successful, is very effective. Knowing nothing, or being obliged, from the course he has adopted, to pretend to know nothing of the subject, and finding that Adam Smith and McCulloch were dead against him, and Stuart Mill, who was formerly so, having only recently modified his opinion and even now enjoining that there should be no encouragement given to the multiplication of labourers, because in the opinion of “farmers,” “Boards of Guardians,” and others of the employer class, the checking of such multiplication would make them “too independent,” and therefore, besides in other respects, not a presentable authority for his intended article, he with admirable adroitness tells his readers at the commencement that he is “not

going to preach political economy."

Nor was the information respecting Trades' Unions that could be obtained from "Blue Books," namely, the Parliamentary Enquiry on Combinations of 1838, and the Report of the Hand-loom Weavers' Commission suitable for his purpose; the last, though quoted by him at the end, not being applicable to any extent, as the hand-loom weavers were not Trades' Unionists, which is one reason given in the before-mentioned Enquiry of 1838 (Questions 1418–19) why their wages were so wretchedly low; while the evidence in the same Enquiry (of 1838), which is divided into two parts, the first containing chiefly the evidence on the cotton-spinners' strike of 1837, and the second the evidence on Irish Trades' Unions, is too conflicting to be used by him, who only intended to see the employers' side of the question. Indeed, it is so conflicting that the Committee made no report upon it. Besides, the first of these contained the opinions of Sir Archibald Alison on Trades' Unions, whom no one will suspect of having an undue leaning towards them. Apart from intimidation and violence which we are as much against as he could possibly be he expresses himself several times favourable to trades' combinations, in terms similar to the following extract. He is speaking of the CottonSpinners' Union of Glasgow:—

"Their combination, I think, might have a very beneficial effect in their own favour, if it was limited to merely legal acts. I think, for example, that it is a very good thing for the cotton-spinners, as well as every other class of labour, to combine, because it enables numbers, to a certain degree, to compensate and to enter with equality into the lists with capital; and therefore I think that combinations are essential to support the rights of labour in the competition with capital." (Question 1956.)

In this state of things, where it was so essential to shut himself

out from using, if he possessed it, any knowledge of the subject, there was nothing for it but to follow the course pursued by Lord Chesterfield when he brought the Bill into the House of Lords for reforming the Calendar. His lordship tells his son, in one of his Letters, that having to bring in this Bill; knowing nothing of astronomy, and consequently unable to explain the reasons for the change; he did what he believed his audience would be better pleased with, namely, instead of urging the reason for the alteration from the science—which, he further said, he did not believe his audience would have understood if he had been able to give such explanation—he gave a history of the changes made in the Calendar down to the then present time, taking care to flatter the prejudices of his hearers by telling them what he thought they would like to hear, by which they were so delighted that they gave him credit for his profound knowledge of the science; while another noble lord, who well understood astronomy, and who handled the subject with the learning of a philosopher, was heard with impatience. With this example of the advantage of being ignorant of the subject upon which he was about to write, which he betters, by turning his real or assumed ignorance to the account described—he proceeds to give a history of alleged misdeeds of workmen when combined—of many of their strikes, in which they are described to be everything that is unreasonable, unjust, tyrannical, and absurd, in the hope, as already in part quoted, that his readers will believe of Trades’ Unions that—

 Their aim and object is, in every case which we have been enabled to investigate, to *stint* the action of superior physical strength, moral industry, or intelligent skill; to depress the best workman in order to protect the inferior workman from competition; to create barriers which no Society-man can surmount, and which few non-Society men dare to assail; and, in short, to apply all the fallacies of the protective system to labour. Such a system injures,

first, the individual, whom it robs of a free market for his labour; secondly, the class of manufactures to which he belongs, by increasing the cost and diminishing the efficiency of the workmen; and, lastly, the nation at large, by curtailing the productive power, and consequently the wealth of the community.—P. 529.

The only result of his "investigation," as exhibited by himself, has been the total exclusion of every fact and circumstance that would justify, excuse, or extenuate the proceedings of the men, which, indeed, appears to have been the only object he had in view in setting himself to investigate the matter.

We have already shown the fallacies of the assertions, upon which this confused argument rests, itself consisting principally of mere assertion. The only part we have not alluded to that might be construed into an application of the "fallacies of the protective system to labour," is the insisting, as Trades' Unions do, that all their members should serve an apprenticeship, generally of seven years, to their trade, and of sometimes endeavouring to limit the number of apprentices. This last, however, is not now the general practice, but the exception. It is always a needy or grasping employer who takes an inordinate number of apprentices, and he never cares a straw for "the nation at large," or "the wealth of the community;" he only aims, in thus using "its productive power," to enrich himself, no matter at whose expense.

The Act of Elizabeth, requiring an apprenticeship of seven years before exercising a trade, has been repealed nearly fifty years, after having been in force for two centuries and a half. The "Quarterly Review," in its late article against Trades' Unions, states that this Act "unquestionably exercised an important influence on English industry. It stigmatised and punished the idle and the vagabond, directed the mass of the people to manual occupation as affording the best means of independent sub-

sistence; and being acted on steadily from generation to generation, it gradually educated a nation of skilled artizans."—P. 480. And although the Act has been repealed so long, the practice has not fallen into disuse. In some trades there is, probably, less to be learned than in others; but there are very few trades in which long experience and practice are not necessary, before the workman is able to compete with those who are considered valuable to the employer. This ability must be acquired at some period, and what more proper than that in which the individual passes from youth to manhood—a time in which, of all others, a facility of hand, and dexterity in performing difficult processes, is the easiest acquired. This, then, being the most proper period, and at the same time this also embracing the period when the passions develop themselves, and are the most ungovernable, does it not follow irresistibly that, if ever in a man's life he need the experienced direction and restraint of his elders, it is this period? An apprenticeship of seven years, from the age of fourteen to twenty-one, whether considered necessary to learning a trade, as the best period for acquiring it, or as conducing to the future welfare of the apprentice himself, points itself out therefore as absolutely necessary. And this is the reason why the repeal of the Act has made so little difference in the practice, and why Trades' Unions, generally speaking, insist that all their members should have served "their time as apprentices." The members are most of them fathers, and they know by experience the beneficial effects of the practice, and the mischief that attends the letting boys "do as they like" at this critical period. But we shall be told this is no reason why the "productive power, and consequently the wealth of the community," should be "curtailed." True. And the same reason exists why the "master villany of the earth, which includes every other villany," and deadly sin—slavery, should perpetually continue; for how else can "the wealth of the community" be so well kept up by sup-

plies of cheap cotton and sugar?

By the "nation at large" we suppose is meant what is termed the "public." The public cares very little how things are produced, so it gets them cheap, and the cheaper they become the more the public likes it. The public, however, always respects those who so take care of themselves as to prevent their suffering wrong. All the reasoning in the world, nor all the admonitions of virtue, benevolence, or religion, would prevent the public from preferring slave-grown sugar or cotton—all the horrors of the slave trade notwithstanding—if it were cheaper and as good as either grown by free labour. But, in justice to the public it must be admitted, that it is also true, that, in the event of men refusing to be slaves—supposing such a thing were to happen—it would receive with a shout of mingled execration and derision the wailing of those who complained that commodities were dear because men were no longer enslaved to make them cheap. The reviewer, therefore, has no occasion to make himself uneasy about the "nation at large;" it never scruples to take care of itself, or fails to respect those who do the same.

In giving his history of the alleged misdeeds of Trades' Unions, he has not bettered his example. Nothing was ever overdone by Lord Chesterfield. Indeed, on second thoughts we begin to doubt whether he ever read the works of that nobleman. He proves too much by his exaggeration; that is, if a jumble of alleged facts, disjointed from all proof that they of necessity belong to Trades' Unions, can be said to prove anything. And it is superfluous to say that he who proves too much proves nothing. He wishes it to be believed that these misdeeds were done by Trades' Unionists in and by their Union. If even they were all true, to make them prove anything against Trade Societies it is indispensable that he should also show of each and all that Trades' Unions could not exist without these or similar enor-

mities. This he does not attempt to do; indeed he has entirely shut himself out from doing so, by his real or assumed ignorance of their action—by his own representation that they are secret, and that therefore nothing can be known about them. He seems to have forgotten that his real or pretended ignorance of their nature and action, so convenient for dark insinuation, makes him incompetent even to argue the subject, much less to prove anything, and consequently worthless as an authority. We have already shown the utter fallacy of his insinuation, that Trade Societies are secret, irresponsible in their government, or tyrannical; but that, on the contrary, they are instituted for the purpose of correcting the disadvantage inherent to the position of the working man when he bargains *singly* for the sale of his labour, namely, of being compelled by his immediate necessities to take a price for it below its fair exchangeable value. To assert that they, in any given instances, have been turned to a bad purpose, is only to say of them what may with truth be said of everything human.

The article consists of thirty-eight pages, out of which twenty-eight are devoted to this history. Some fourteen or sixteen cases are mentioned, which we suppose are by him deemed sufficient proof; and if the careful suppression of everything alleged by the men as the reason of their proceedings, with the aggravation of all that was alleged against them, and the as careful setting forth as patterns of justness and liberality the proceedings of the employers, could achieve a demonstration of truth, the reviewer would be triumphant. It is rare to find so much alacrity, so much *con amore* readiness to accuse. If the reviewer had been formerly an Unionist—a compositor, for instance—and, like Hugh Miller, had been affronted by his former associates, he could not be more bitter against Trades' Unions. His zeal against them is as great and as indiscreet as that of an apos-

tate. The most absurd and exorbitant demands, upon the silliest pretences, the most unjust and tyrannical proceedings towards each other, without sense or reason, he charges, in the various instances he has given, against the members of Trades' Unions. He refutes himself from the sheer impossibility of such allegations to be true; or, which is the same thing, to contain the whole truth. Our argument does not rest upon the refutation of particular cases; it is, therefore, not necessary to follow him through his twenty-eight pages of one-sided statement. It is only necessary to take the first-mentioned, which is the strike of the tin-plate workers, at Mr. Perry's, Wolverhampton, by which may be judged how far he is to be relied upon for the rest. He revels in bitter accusation with the vehemence of female malignity, incapable, like a true virago, of seeing wTong in anything or anybody but the object of her vituperation, recounting each accusation without pause or break in the energy of her volubility, until her vehemence has fairly spent itself. Such is the manner in which the subject is treated, and, as might be expected, the conclusion is destitute of logical sequence.

After a page or two of uncertain maundering on the Handloom Weavers' Commission, which he quotes, and with which he does, and does not, agree in respect to alterations in the law of combination suggested therein, which he very truly suggests "do not amount to much," the conclusion he comes to is, that there should be a parliamentary inquiry into the state of industrial society in England, before a select committee. What, an "inquiry" only after so much violent accusation about the "mysterious tyranny," which has "honeycombed" English society—eaten, as it were, into its very vitals—like that of Continental nations, with its "spies," "enforced dumbness," "*suveillance*" and "distrust on the right hand and on the left?" Why, he abjures himself. It is a confession that he has written to the prejudices of

his readers, and that he is frightened lest they should seriously believe what he himself does not know to be true. Though this is quite apparent from his mode of treating the subject, it is singular that he should virtually confess to the fact. Yet with strange perversity, like a virago, who, no matter how she has destroyed her own credibility, ever returns to her first word, he reiterates as his last word, this time by an assertion, in answer to a roundabout question put by himself, that 'Trades' Unions are "a secret organisation of trades," which "have undermined the groundwork of society in England!"

We now proceed to show how far his version of the first of the cases he says he "investigated" is to be depended on, by giving an account of the same case, chiefly from the same authorities, which he himself consulted in his investigation. The minutes quoted of the Committee of the National Association, to which he had not access, only showing the success with which the defendants were imposed upon, of the imposition itself there was ample evidence in the report of the trial, which the reviewer states he consulted.

Four pages are devoted to an account of the strike and subsequent trial for conspiracy at Wolverhampton. The strike was at Mr. E. Perry's, tin-plate worker, japanner, &c., of that place, who was afterwards the prosecutor.

Mr. Perry is said to "have believed" that he was paying "ten per cent, higher wages than the average of his trade in Wolverhampton; and there seemed to be no conceivable reason why anybody should be troubled about the affairs of the manufactory." According to the men, however, Mr. Perry had been for years attacking their wages; and, at the time of the strike, so far from his paying 10 per cent, more, he was paying 15 per cent, less than the average wages of the other manufacturers of the place.

Mr. Perry admitted, in his evidence at the trial, that there had been a strike in his factory in 1842; and, after some hesitation, that he had agreed to a “particular” book of prices for his own shop, and that “he had been distinguished in Wolverhampton by having a great deal of opposition brought against his manufactory, by other persons not connected with it.” This does not much differ from the men’s account of the “opposition” to which he had been subjected through paying lower wages than the other manufacturers of the town. With certain employers, it is never their own men that are dissatisfied; it is always other people who set them on. To rectify this, the men joined the “National Association for the Protection of Industry,” and requested its Committee to wait upon Mr. Perry in their behalf. Accordingly, Messrs. Peel and Green, and afterwards Messrs. Green and Winters, in company with “three or four of his own men,” waited upon him with a list of prices, to which they wished him to agree. One of this deputation afterwards became his foreman, and was one of the witnesses against the defendants. The other employers, six firms in all, were also waited upon, with the same list of prices, two of whom—Mr. W. E. Walton and Messrs. Shoolbred, who were large manufacturers, and who employed more men than all the others put together—returned a favourable answer; one, Mr. Thurston, a conditional acceptance; the other three, Mr. E. Perry, Mr. R. Perry, and Mr. Fearncomb, entered into a negotiation with the deputation, or professed to do so. In reference thereto, Mr. E. Perry, in a letter to the *Daily News*, of August 20, 1851, writes:—“I gave the parties to understand that I required time to examine their proposal, and more especially to look into the book of prices.”

In furtherance of this expressed intention, and to keep up this appearance, Mr. E. Perry on several occasions met the defendants, and actually agreed to the price of certain articles; at

which time there appeared to be the most perfect accord as to the negotiation. Mr. Peel, as admitted by Mr. E. Perry, said that “he was not for strikes, but for peace,” to which Mr. E. Perry replied, that “if a satisfactory arrangement took place, it would be through his (Mr. Peel’s) good management.” Mr. E. Perry also drew up a preliminary agreement declaratory of such arrangement, which they that is, Mr. E. Perry, Mr. Peel, and the rest of the defendants who were present, except Rowlands—all signed.

How far the members of the Committee of the National Association were justified in believing themselves, besides being appointed by the journeymen tin-plate workmen of Wolverhampton, to represent them, also fully recognised in that capacity by Mr. E. Perry, will appear by the following extracts from the minute-book, written at the time, of the National Association:

“April 9, 1850. At an interview that Messrs. Peel and Green had with Mr. Perry, it was agreed, in consequence of the meeting of the ironmasters then about to take place, to postpone all further proceedings for a fortnight; but still it was deemed necessary that the other employers should be personally visited, Mr. E. Perry, in the meantime, promising to use his influence to obtain a conference with the other employers on the subject.”

“May 3, 1850. Mr. Green reported that Mr. E. Perry had consented to a conference of the employers and the men, one from each shop, together with Messrs. Peel and Green, as their advisers and advocates, to arrange the book of prices.”

“May 30, 1850. Mr. Green reported that Mr. Peel and himself had had two meetings with Mr. E. Perry about the preliminaries, and that the conference of the men and the employers would take place on Monday, June 3, 1850.”

“June 5, 1850. Mr. Green reported that the proposed conference between the employers and the men, commenced on Monday; that there were four employers and six men (one from each shop) present, in addition to himself and Mr. Peel, to arrange the book of prices.”

It was at this meeting that Mr. E. Perry drew up the preliminary agreement declaratory of such arrangement referred to above.

We give these extracts, not for the purpose of comment, but simply to show that, whatever might be Mr. E. Perry's version of the affair, the two members of the Committee of the National Association had good reason to believe that he was perfectly willing to arrange respecting the prices of the men. We may here mention, that, in the end, the two employers, Messrs. Shoolbred and Co., and Messrs. W. E. Walton and Co., whom Mr. E. Perry, in his letter of August 20, calls the two "youngest firms," who, as before observed, employed more men than all the other firms of the place put together, agreed to the terms of the men.

To return, however, to Mr. E. Perry. After keeping up this pretence of negotiation, with all this apparent good faith and appearance of agreement, for about three months, having employed this time in "forwarding a large amount of orders then unexecuted; in accumulating as large a stock of goods as possible, in anticipation of further orders;" and fortifying himself by what he called "protecting his men," in entering into written contracts with sixty of them, for one, two, and three years, he threw off the mask, and "frankly," as he said in the same letter—"coolly" we should have thought the most proper word—told those with whom he had kept up this farce, that he never intended from the first to agree to the list; that he was now provided with men under contract, and should decline all further communication with them.

It was under these circumstances that the strike took place, and no one can wonder that it was carried on with feelings of bitterness on the part of the men, especially when it was found out by them, so bound, that the contract, while it bound them to Mr. Perry for its full period, whether of one, two, or three

years, and six months' notice afterwards, was not binding upon him, who, by its terms, which they had never strictly scanned, was able to turn them off at one month's notice. This was the true reason why several of these men left him. Besides, they considered themselves deceived. They imagined they would be employed according to the list then in progress, while it was never intended to be agreed to. This was the reason why the men, in the language of the reviewer, "began to disappear;" this was the reason why there were "shop meetings." The men were irritated by the flagrant deception that had been practised, both with regard to the prices and what they conceived to be the injustice of their contracts. It is singular that Mr. E. Perry should call this "protecting" his men. These men ignorantly thought that contracts so inequitable, and consequently, as they believed, so unjust, could not be legal. This foolish mistake was soon corrected by the magistrate, who sentenced some to imprisonment for breaking them. This, however, did not convince them that they were morally binding, and they still continued to leave. To put a stop to this practice, which was only bringing mischief upon themselves, the "London meddlers," as the reviewer calls them, posted placards, urging these men to return to their work; and in consequence many of them did so.

The reviewer omits all mention or reference to the fact above mentioned, that the two firms of Messrs. Shoolbred and Co., and the Messrs. Walton and Co., agreed to the men's list of prices; and also, to the fact that Mr. E. Perry, in his evidence on the trial of the men whom he indicted for conspiracy, swore that he was in wages paying, to the best of his belief, the same as these firms, except, it might be, that in £100 he paid under 10s.; that is not quite $\frac{1}{2}$ per cent. less than they did. We have already stated how much the men said he was paying less. Taking his own sworn testimony, however, what motive could there have

been for the deceit he practised? This poor $\frac{1}{2}$ per cent. would not, on part of the men, have stood in the way of an arrangement. Our knowledge of Messrs. Peel, Winters, and Green, the three "London meddlers," enables us to speak positively as to this fact. They would only have been too happy to come to such terms. It must, if he is to be believed, have been from the pure love of contention and strife. According to his own words—and they are his words on oath—he had no one to blame but himself for the strike which took place. As to the charge against the defendant Green, of advising the apprentices to spoil their work, though urged with great energy by Mr. E. Perry's counsel in aggravation, it is perfectly clear the same as the rest. Mr. Green denied it in an affidavit, and the Court believed him in preference to the witness.

That there might have been some acts which came within the scope of the law, considering the exasperation which the deceit practised upon the men would naturally occasion, was to be expected; but there was no act of violence during the whole affair. Nor was the only threat of personal violence deposed to believed by the jury, as they on the trial expressly state. There was some "hard swearing" on these trials—for there were two: the first of the defendants who belonged to Wolverhampton, and the second of the Committee of the National Association. We find, by the *Wolverhampton Herald*, of October 22, 1851, that Mr. E. Perry was brought before the magistrates of Wolverhampton, to answer a charge of perjury on the second trial, brought by Mr. Peel, for swearing that he was seen by him (Mr. E. Perry) in Wolverhampton on a certain day, and thereby, as there was no other evidence against him, causing his conviction; Mr. Peel being then, and nearly a month both before and after that date, undoubtedly in London.

As none of the defendants had the remotest idea that such ev-

idence would have been given, they were not prepared to rebut it, and it was then impossible to bring evidence from London in time. The effect of this evidence was to connect Mr. Peel with a certain placard. The present writer was shown at the time the "Letter" and other books kept by Mr. Peel, in London, day by day. From the entries therein, it appeared indisputable that the defendant was in London on, before and after that date; he also has conversed with persons, who assured him they saw and spoke to Mr. Peel, in London, on that day.

As, however, Mr. Perry brought two witnesses to swear that they also saw Mr. Peel there on that date, the magistrates, according to the report, declined to commit. This decision, however, they said, would not debar Mr. Roberts (the solicitor for the prosecution) from proceeding by indictment. Mr. Peel, however, did not so proceed, for he very reasonably said, "I know that I was in London at the time Mr. E. Perry swore I was in Wolverhampton; and so do others too; but how am I to know that, when the indictment is tried, there will not be two more witnesses to swear that they also saw me there on that day?"

The reviewer is very copious in his account of the alleged spiriting away of the men engaged by Mr. E. Perry, and of the "low intrigue, deceit, drunkenness, and coercion," stated by the witnesses, some of whom would drink to any extent while drink was to be had,—*"Bumper"* Griffiths, one of them, who obtained this cognomen from his frequent inebriety, being a specimen of this class. But the reviewer is entirely silent as to the conduct of Mr. Perry, and of the likely consequence of that conduct, unblushingly not only avowed, but made a merit of, and triumphantly boasted of by him, when he threw off the mask. Is intrigue only low, and deceit reprehensible, when alleged against workmen? The fact was, whatever else there may

have been, there was no deceit or intrigue, properly so called, on the part of the defendants at all. The men who did not go to work for Mr. E. Perry, or, having been engaged, did not continue with him, perfectly well knew what they were doing, and were willing to do it. Coercion was, therefore, out of the question. Mr. E. Perry, by his own act, provoked the strike; and as, according to his own sworn testimony, whatever might have been the real fact, he had little or no advantage to gain by it, it must have been for the sake of the strike itself. What else but a strike could have been expected, after what had passed? If there is one thing more than another that causes men to feel bitter towards another, it is a sense that they have been deceived. What, therefore, could have been expected but that it should have been carried on with bitterness—with not only determined opposition, but with the contemptuous loathing that men always feel towards him who they believe has deceived them? It may reasonably be asked, if there were so little difference between the prices (according to his sworn testimony) paid by Mr. E. Perry, and those paid by the other employers, why did the men continue on strike? The men asserted, so far from this being true, that he was paying about 15 per cent, less than they did. And when it is considered how nearly flagrantly deceiving his men is allied, from the very fact, to the intention of paying them as little as possible, the statement of the men is the most likely to be correct; in which case, it will be seen, that this gentleman, after commencing his operations in this affair by the before-mentioned deception, of which he triumphantly boasted, and carrying them on by a series of inequitable contracts with his men, finished victoriously in a court of law, by stating what opponents declared was incorrect. It is not difficult to account for the apparent sympathy in this case of the reviewer; for was he not himself occupied in suppressing half the truth throughout twenty eight pages of good octavo print?

2. THE “QUARTERLY REVIEW.”

Capital is said by this reviewer to fly turbulence and strife, and to be timid, which is very true; but this is very incompletely stating the question. Capital eschews no profit, or very small profit, just as Nature was formerly said to abhor a vacuum. With adequate profit, capital is very bold. A certain 10 per cent, will ensure its employment anywhere; 20 per cent, certain will produce eagerness; 50 per cent, positive audacity; 100 per cent, will make it ready to trample on all human laws; 300 per cent., and there is not a crime at which it will scruple nor a risk it will not run, even to the chance of its owner being hanged. If turbulence and strife will bring a profit, it will freely encourage both. Smuggling and the slave trade has amply proved all that is here stated; and, what is worse, the slave trade and slavery, by the profit attending them, have so debauched the public mind where they exist—and be it remembered neither would exist but for the profitable return of capital so employed—that it has turned the so-called freest country in the world into a vast slave-pen; and, worse still, it has set all the pulpits in the “South” of that country to prove from the Word of God that this master crime is sanctioned by the Almighty. This is what capital does, and is doing; which, alas for human nature! no one can with truth contradict. Now, we do not mention this to cast a stigma on capitalists; for we believe that the evil instinct mentioned at the commencement, from which it all springs, is equally to be found among our own class as the class that employs capital. Our object is to show that, when labour and labourers are assailed by all manner of folly, mischief, absurdity, and wickedness, being imputed to them as being done by means of their Trades’ Unions, that the same things, and infinitely worse, are justly to be imputed to capitalists in the employment of their capital; and that it is

equally absurd to impute to Trades* Unions any of these alleged vices as it is to impute to capital all the crimes we have here enumerated. Capital in itself is good, and so in themselves are Trades' Unions. They are a barrier against undue reduction of wages, which is always prompted to increase immediate profits where there is an immediate opportunity. Without them that opportunity would frequently occur, of which advantage would not fail to be taken. Both may be misused. Capital, we know, is, and our opponents say Trades' Unions are; but that is no argument against either. To charge the enormities above recounted against capital would be as absurd as to charge the "shillala" with which a man's brains have been dashed out, or the blunderbuss with which his head has been riddled with bullets, with the murders committed by the use of them. The same with Trades' Unions. We, therefore, except for mere illustration, do not feel called upon to go into the different cases mentioned by "Quarterly" reviewer. Our argument does not rest upon their refutation or denial. Concerning them, we only assert that they are one-sided, and, consequently, do not convey the whole truth. That a Trades' Union may be so worked as to be pernicious we no more attempt to deny than that capital has also been employed for nefarious purposes. All we contend for is, that such purposes are not the natural and proper uses of either.

In the instances of strikes and other matters which the reviewer gives, we see no reason to believe that he has, like his brother of the "Edinburgh," imparted to them any bitterness of his own; he appears to have taken them just as he found them, with all the abridgments fairly made; but it must be always remembered that it is the employers' versions that he has used. The men's version of the same transactions would be very different. Take, for example, the Preston strike of 1854. It is al-

leged that besides the 10 per cent, from the four employers who refused the advance, which had been given by the other thirty-one or thirty-two employers of the place, that the men wanted "to fix a standard of wages throughout the country, and it was upon this point that the strike virtually took place." In reply, it is only necessary to state, that the men from the first were anxious to refer what they wanted to arbitration; an offer which the employers invariably refused. This fact—which is a complete answer to all charges of unreasonable or exorbitant demand on the part of the men—the reviewer does not mention. The real state of the case appears to have been this: the firms who had given the advance of 10 per cent, saw in this strike an opportunity, by the process of a "lockout" of retracting it. When, therefore, the men struck these four factories in the belief that they were serving the employers who had given the advance, these very employers were agreeing with these four employers to defeat the men, and get back the 10 per cent, by locking the men out from all their own factories. This was no doubt considered by them a masterly stratagem, which must ensure success. The workmen, however, perceived it in a different light; they viewed it as a coup worthy of Mephistophiles. It was indeed what they did not expect; they never supposed, simple men! that those, in whose behalf they believed they were contending, would turn in this manner against them. It was their "Leipsic," and what their feelings were likely to have been in these circumstances may be judged from those of the French army in that battle, when their allies went over to the enemy and poured destructive volleys into their ranks. Hence the exasperated and prolonged nature of the struggle.

It is quite true that according to bargain principle—under which all contests of this kind should be conducted—perhaps their true course in these circumstances would have been to

refuse to contest the matter farther. But who could expect them to do so? Men of higher grade, and of far better education, have, under circumstances of less exasperation, pursued what turned but to be a hopeless contest to the end and, if the expression may be allowed, even beyond it—with, though losers, the approbation of the whole community. But then they were not "misguided operatives." It must be admitted that they showed good fight, and also—even according to the bargain principle—that they had, from the long time it was doubtful which side would win, a good chance of success. Mr. Cowell, at the Bradford meeting, stated the cause of their defeat to have been the depression which arose from the uncertainty that preceded the Crimean war, which was then imminent.

With respect to the fines alleged to have been imposed upon employers by certain Trades' Unions in Manchester (p. 505), we can only say that we hope the reviewer has been misinformed. This is the first time we ever heard of such a thing. If true, it only shows that the evil and folly of our nature will show itself everywhere. The men who counselled this, would, if employers, be as unreasonable and as insolent as they, if true, are here described to be as workmen; perverting the true use of their Union, to insult their employers, just because they foolishly thought they had the power to do so. Such men where such there be are the bane of every society into which they come. Impotent for good, but powerful for mischief, they destroy or spoil everything they touch. But this description of persons are to be found everywhere, in every grade of society; and it would be as unjust to decry Trades' Unions because of their insolence, as to decry British merchants generally because of the impertinence of the four Liverpool so-called merchants who lately wrote to the Emperor Napoleon, "requesting to know his intention."

But it is said that the trade of shipbuilding has been driven

from Dublin by Trades' Unions and Strikes.

This charge, made by Mr. O'Connell, is founded on the evidence of a Mr. Fagan, timber merchant (from 1818 to the time he was speaking), and Mr. Morton, late a master shipwright (from 1812 to about 1828), both of Dublin, given in the Blue Book on Combinations, 2nd Report, of 1838. It does not appear that Dublin was at any time distinguished among the other ports of the United Kingdom for the number and size of the ships built there, or as its natural capabilities deserved. But this in passing. Their joint evidence is to the following effect:—1st.—That in consequence of the combinations the men did not earn their wages, and that, therefore, the charges for shipbuilding were as so high, that no one who could help it would have their ships repaired there. Ships that wanted repairs were, therefore, only "cobbled up," so as to take them to Liverpool or other ports to be thoroughly repaired. Of the ridiculously high charges an instance is given. 2nd.—That, in consequence of apprentices being taken to remedy this, the men struck, waylaid, and murdered one of them who was serving his time to Mr. Morton, which was the "finish of the shipbuilding trade."

It is necessary to state that trade combinations, as described by these and nearly all the other "employer" witnesses examined before this committee, were not Trades' Unions in the proper sense of the word, but always associated with violence; in short, as so many conspiracies ready at any time to concoct and to perpetrate "assassination beatings," as Mr. O'Connell called them. Apart from violence, there seems, on their part, to have been no objection to combinations. This also was Mr. O'Connell's idea of them. According to these witnesses, violence and intimidation was a sort of "institution" in Dublin and other ports of Ireland, used by all who lived by labour; by brewers' draymen, canal boatmen, porters in the egg-market, and others, whether

belonging to trade combinations or not. It is proper to state that all the “workmen” witnesses most emphatically denied that violence, or incitement thereto, was ever done by their trade combinations. 1.—On the first, Mr. Morton said, that while the men received 27s. a week, “half of them were not able to do work worth 2s. a day; indeed, to some of them he would rather pay 2s. a day to stop away.” (Questions 5952 to 5955.) The instance of high charges is of a ship of 90 tons, which put in for repairs; of which, he says, “the shipwright’s account for labour was three hundred and odd pounds—that is, upwards of £3 (not less than £3 5s. 6d.) a ton for repairing the vessel; and vessels can be bought in the north of England for 30s. (for labour) a ton.” (C)5959.)

In reply to this, it is only necessary to mention London, Sunderland, Liverpool, Glasgow, and Dumbarton, among other ports where shipbuilding flourishes, and is extending every year; there are what is called, in this evidence, “strong Unions.” Surely it will not be said that the incapacity or idleness described exists in either of these places. And if not, the charge is irrelevant to Trades’ Unions. Nor could it be on account of wages; for in the port of London at this very time (1825), the wages of a shipwright was 6s. a day, which rate continues up to the present date. In respect to the instance given, as a charge, it refutes itself. In all the ports in the North of England there are the same “strong Unions.” If similar vessels, which in Dublin costs 3 5s. 6d. a ton, for *repairs alone*, could be bought out-and-out in the North of England for £1 10s. for labour where there are “strong Unions,” the charge is refuted out of his own mouth. We do not believe these statements, but such is the evidence. 2.—On the second, Mr. Morton says:—After two previous strikes, in 1812 and 1814, there was, in 1825, another, about apprentices. He took one named Andrew Marchant. “This lad (about

21 years of age) was beaten to death by a lot of men at about half-past eight in the morning. He died in two hours." He continued in business three or four years afterwards, when, because trade was bad, and "the number of his apprentices was so extensive," he quitted the business. This is the account he gives of the "break up" of the shipbuilding trade in Dublin. The circumstances that led to which, and probably the murder itself, it will be seen, took place before the repeal of the combination laws. Indeed the acts of violence before their repeal were greater than afterwards. Of this, Mr. Fagan says:—"He recollected Mr. Morton; he was completely broken by attempting to put down combination." Of this murder, he continued:—"This man was murdered, he thought, about ten o'clock in the morning; he could not exactly recollect the date; but that was the complete finish of the shipbuilding." (3913 to 3921.) Shipbuilding had not, however, "been extensive" in his recollection: he recollected seeing two or three vessels on the stocks. (3922.)

From this account, it appears that the trade was "finished" by a murder in the open day. The murderers all escaped, Mr. Morton said, in such a manner, that there was "no such thing as getting at any of them." (5933.) When it is considered that this crime was committed when "the bell was rung for breakfast," and, consequently, when there must have been many persons passing and repassing from the Gasworks and Canal Docks (where it took place being close to both), it is, we submit, most incorrect, to call it a *Trade* outrage. It was more like an agrarian murder; it was done in the open day, by the connivance of all passers by, who silently agreed to suffer its being done, and to allow the escape of the murderers.

Of it we can only say, that, if this be a true account, the wonder is not that shipbuilding was annihilated, but that any trade or manufacture remained where such things could take place.

We no more acknowledge any connection between such acts as these and Trades' Unions, than we do between a table knife and its use as a murderous weapon. Such acts and violence generally, belong equally to all classes, and exist in every place where there is impunity for them, whether there be many to one, as in this instance, or on equal terms as in a faction fight. There are no Trades' Unions in the United States ; yet where are there so many acts of violence, from "tarring and feathering" up to murder? Even at Oxford, where one would think such things would not be known, they occur annually or oftener, in which lives have been lost, and will always occur, while the authorities permit them ; for the way in which they are dealt with amounts to permission. Indeed, by the grand display of this pugnacity, on the arrival of his Royal Highness the Prince of Wales as a student, it would appear these rows were also considered an "institution," of which they ought to be proud. But wherever they occur, and of whatever kind, for the continuance of such acts the police are responsible, and it is only by the criminal negligence of the magistracy that they are perpetrated. This was the opinion of Mr. Fagan, who said that his life was threatened, and that for two years he carried pistols (3876) in the daily fear of a murderous assault. He says that the murder of Hanlon in the open day was because "no person had been taken up for any outrage before." (3954.) And again, "If the magistrates years ago had been active, and punished the cases brought before them, I do not think the violence would have gone to the extent it did." (3998.)

From the whole we think, that if these witnesses spoke the truth—and they are the sole evidence—and that shipbuilding was finished in this way, that it is not in any way to be laid to the use of Trades' Unions, but to their misuse, and it is no more against them than—to use a peaceful analogy—the misuse

of capital in corrupting the electors of Gloucester and Wakefield is against capital. But, after all, we doubt the fact ; the same things happened there in other trades which still went on, though doubtless all would languish in such a state of things. It is most painful to read this evidence ; it is one continued recital of wrong and violence from one to the other. Employer against workman, and workman against employer. In the shipbuilding trade no workman was examined, or there would have been a very different side to the question. But in all the other trades there were. As the above evidence is a specimen of what is alleged against the workmen, it is only fair to give what the men alleged against their employers. They are accused of the meanness of paying their men in bad halfpence, who, after being bandied about from one to another, did not get good money for them. (6540 to 6550.) The following account is an answer to the question why they so ill agreed. The firm of Henry Mullens and McMahan, builders, is spoken of: Their practice was, when they entered into a contract, to engage about double the number of men the job would require, who were generally sent for from the most distant ports, and, after they had worked a short time at whatever rate they were engaged, about one-half of them were sitting idle for the want of materials or some other pretext ; but he held on in the hope of being again set to work, until, far from friends and home, they were starved into obedience, when an offer would be made to set them to work at reduced wages, which if they accepted, the same or lower wages would be offered to those that were kept at work with them ; and thus they would oblige them to reduce each other to the lowest terms by which they could support a miserable existence. This plan they pursued at the Dublin Docks and Library, where those outrages commenced, and it was a portion of their own men, rendered desperate by disappointment and want, who attempted to wreak their vengeance on those whom

necessity obliged to be the immediate cause of their sufferings. (7948.)

Mr. Black will find, p. 209 of this report, his case of the two "helpless orphans," quoted by him from a speech of Mr. O'Connell, completely contradicted by the two "orphans" themselves ; and that their employer, Mr. Mackie, not only "never offered to take them as apprentices, or offered them any protection," but that they served their time under the protection of the men who were thus vilified ; and that the said Mr. Mackie was a most avaricious employer, who used the "truck system much to his own advantage." It would have been better if Mr. Black had read this evidence before he gave his lecture.

There was one homicide by an employer, Mr. Carolin, who killed an Unionist. He was tried and acquitted ; Mr. O'Connell, who was counsel for the prosecution, said, in reference to it, "that every avenue to justice was choked." For the murder of Hanlon four Unionists were executed. This was, doubtless, legally correct ; but the discrepancy remained to rankle in the minds of those already exasperated. There were strikes against what was considered to be an inordinate number of apprentices ; they were used as a means of reducing wages, and resisted on that ground. Many employers of all kinds agreed very well with their men ; but there appears always to have been a certain class who were never at rest unless they were reducing wages. Throughout the whole evidence, amid the confusion of incidents and the wrong detailed on either side—and on both sides there was much wrong—strange to say, though employers deposed to "assassination beatings" and to going in fear of their lives and to carrying pistols, there does not seem to have been any difference in the course pursued. Perhaps they got used to it. Each class appears to accuse the other of inordinate greediness : the men of acting like the boy in the fable, who killed the golden goose

; and the employers, of being ready from greediness to commit any act of extortionate oppression. There were honourable exceptions, but the leaven of evil was too strong to allow trade to flourish. It is gratifying to add that this state of things has now passed away.

This reviewer has recorded the singular "admission" of Mr. O'Connell, "that Trades' Unions had wrought more evil to Ireland than even absenteeism and Saxon maladministration ;" but he does not state when this "admission" was made. Did it never occur to him that Mr. O'Connell might, after hearing this evidence, have changed his opinion? The reviewer could not be ignorant, that in the subsequent public life of Mr. O'Connell not a single act was done by him that would justify the belief that he retained it. But, on the contrary, if he did retain it, he must have been the vilest of profligate political adventurers to goad, as he did, to the verge of civil war, the passions of his countrymen in the agitation for repeal which he set forth as that which would be the salvation of his country, when he believed the master evil under which she groaned was, in truth, to be laid to a very different cause than her union with England. Whatever else may be said of Mr. O'Connell, he was undoubtedly a shrewd man. He procured this committee of inquiry, no doubt, in the belief of what he is said with singular felicity to have admitted ; in the hope of putting a stop to the frightful outrages—in fact, murders in the open day—which then took place in Dublin and other places in Ireland, by not only artisans who were Trades' Unionists, but by others whom we have mentioned, who appear to have "hung together" without any specific "union" at all. The cause of their continual repetition may be given in one word—impunity. From that single cause we repeat—the Town and Gown riots at Oxford and the outrages in the United States of America are also continued. And he justly thought that if he

could draw public attention to these acts, which were a disgrace to the authorities of that city, boasting as it did of a lord mayor with all the machinery of police authority, these officers would be shamed by public opinion into exertions to put a stop to them. In this he succeeded by this inquiry, for which intention, indeed, more than one of the witnesses complimented him. But when he heard the evidence on both sides, and how the violent acts were provoked by equally violent extortion and oppression on the other, his opinion must have been changed ; he must have seen that the evil was to be attributed to a different cause, namely, not to Trades' Unions, but to the provocation to which the users of these institutions were subject. He could not fail to see that it was not the machine by which the thing was done that was responsible for the mischief, but those who had used it for this purpose. This view must have been entertained also by the committee, for they made no report, nor appended a single opinion to the evidence.

The cause of the building of ships not flourishing in Dublin is, we think—if there be any value in the evidence here adduced—obvious enough. Immediately it is, because they can be built and repaired cheaper elsewhere. The cause of this cannot be in Trades' Unions, because in the very places to which they go to be repaired, and in which they are built, there are strong Trades' Unions. It cannot be in the high wages that are paid in Dublin, because as high and higher wages are paid elsewhere, where there are also strong Trades' Unions in which the trade flourishes. It can scarcely be in the violence, for that has occurred in trades that still went on. The case of the ship of 90 tons costing £3 5s. 6d. per ton in labour for repairs, when a ship for labour, from first to last, would only cost £1 10s. in the north of England, if only partially correct, enigma as it is, is a perfect solution why it is that no ships are likely to be built or

repaired in any place where such unaccountable charges exist. If the gentlemen who have been so ready to denounce Trades' Unions were to read this evidence, they would see that employers who act as this evidence discloses they acted towards their men, and men who are provoked to act as it also discloses towards their employers, are not on sufficiently good terms, let them be in Ireland, England, or anywhere else. Trades' Union or no Trades' Union, to ensure the success of manufactures or commerce. No matter that labour is said by Mr. Buxton to be "plentiful and cheap," "that there is abundance of water-power and first-rate harbours." Capital and labour must go hand in hand ; each must be willing to assist the other, or all is of no avail.

The predatory instinct of which we have spoken, and which belongs equally to each, must be laid aside or kept down, that each may act in harmony. If employers and employed use this instinct, "as not abusing it," the principle of exchange will flourish ; the employer will give labour its just equivalent, and the employed will return it by good measure pressed down, and running over. By no other course, where labour is free, can manufactures and commerce flourish. A state of mutual irritation, contempt on one side and hatred on the other, is inconsistent with the state of mind essential to the progress of industrial and manufacturing skill. The ability may be present, but it will not be used to any successful purpose ; on the contrary, it will either dwindle away, or take its flight to places more congenial to its exercise.

MASONS' STRIKE.

As the "Quarterly" reviewer has recited many instances of strikes to show the alleged animus of Trades' Unions, we quote the

following—given, it is hoped, with more fairness than his instances—to show the alleged animus of certain of the employers. It is abridged from the masons' "Narrative" of the strike, published in 1842.

Sir Morton Peto is reported to have said that he had, at the expense of £16,000, defeated a strike ; and that he was ready to incur a similar expense to support the "declaration." This gentleman, who is equally distinguished for his patriotism, his piety, and his success in making money, has, no doubt, his own good reasons for being ready to repeat so considerable an outlay. We make no complaint against him for having pursued a course which he believed to be for his own advantage ; we only claim an equal right for the men to do the same. The strike to which he refers took place at the building of the Houses of Parliament, in September, 1841. It was of the masons, against the tyranny of their foreman, whose acts of brutality and profane language were made the subject of complaint to his employers, Messrs. Grissell and Peto, July 13, 1841. There was also a complaint that there was not a proper supply of certain tools, and that the men were forced to purchase their beer at a particular public-house (the Horse-shoe and Magpie, Bridge-street, Westminster). Upon these matters a deputation from the men had an interview with Mr. Grissell on the ensuing Monday, when the following complaint, as the most prominent, was entered into : One of the men had received a letter, informing him of the death of his mother, from Manchester, where she was then lying dead ; and, wishing "to bury her, dispose of her effects, and discharge her little liabilities," he showed this letter to the foreman, and asked leave of absence for a week or a fortnight, who informed him, with an oath, in reference to the fortnight, that if he wanted his money—i.e., his discharge—he might have it, but he would be d—d if he would keep a place open for any-

body for that time. The man then asked for a week, which the other said was too long a time. He would be "d—d," he said, "if one day to go to Manchester, one to bury her, and one to come back, was not quite sufficient ; and he would be d—d if he would give any longer time."

Without obtaining leave the man went to Manchester, and returned at the end of four working days to his work. Owing to the remonstrance of the men he was not discharged. The foreman, however, would not allow him to return to his usual work, which was of superior description, but put him to the "dirtiest, the coarsest, and the most inferior sort," which, it need not be said, to a superior workman was the most effective mode of insult that could be pursued. Mr. Grissell, after hearing evidence in support of this complaint, which the foreman, who was present, did not attempt to refute, affected not to believe it. All that could be got out of him was, that "the absurdity of the charge refuted itself."

With respect to the tools, Mr. Grissell undertook partially to remedy the matters complained of. With this the men, who did not wish to push matters to extremity, were obliged to be content. With respect to the beer, on which subject the men entered into "somewhat fully," Mr. Grissell, it is related, stated, in reply, that "he could not make up his mind to allow the men to have any other beer until he had consulted Mr. Peto, his partner, inasmuch as there existed an understanding between them and the brewers of that beer" (p. 14 of the "Stonemasons' Narrative"). Who the brewer was with whom there was this understanding is not stated.

Now, if this statement is to be relied on, it is impossible not to admire the skill and astuteness with which the gentlemen of this firm turned every point connected with their business to account. They endeavoured to make their men find their own tiles

(for the soft stone) ; they are alleged to employ, and sustain in office, a brutal foreman, who, on the same principle that selects the cruellest man that can be found for a relieving officer "to lessen the rates" for the poor, is supposed to extract the greatest possible amount of labour out of their men ; and, finally, it is said, they endeavoured to turn to account, as far as beer was concerned, their daily wants. No wonder the firm was ready to oppose, at all risk, any alteration in an arrangement so beneficial to themselves. Perhaps, after all, £16,000, which at 5 per cent. is only £800 a year, was well laid out in the endeavour to sustain it. For, if by these appliances sixpence a day additional could have been got out of each of the men, 230 in number, it would have amounted to £32 10s. 0d. a-week, or £1,690 a-year ; if only threepence, it would have amounted to more than the interest (£800) at 5 per cent. of this sum.

Many will exclaim that in this view of the question Messrs. Grissell and Peto did right in not discharging so profitable a servant, as it was by his means that so large an amount was obtained that they were justified in retaining him at any risk. Exactly so. But by the same rule, and for the same reason, namely, that they were made to produce an extra quantity of work without being paid for it, and therefore by the true principle of exchange—to say nothing of his profane brutality—the men were justified in refusing to work under him.

The men on the whole believed that this interview would have a good effect, and resumed their work. For about six weeks there appeared a change for the better. This, however, did not last, for the foreman reverted to his old courses, with aggravated violence. With respect to the beer also, with or without the direction of his employers, finding that the men drank water instead of the beer in question, he locked up the door leading to the pump. The following instances were given of his cruelty

and tyranny, to which the men refused any longer to submit :

One instance was of a labourer who fell from a scaffold in their employ and broke his leg, who, as soon as he was able, returned to his work. The foreman told him to go about his business, as he did not want lame cripples like him. This case was controverted. In an investigation which took place, however, though there were some mistakes as to the individuals mentioned, the fact remained unshaken.

Another, that of a man who was taken ill, and obliged to leave his work for a few days. When he came back, expecting to resume his employment, the foreman, seeing him not look so well as previously, told him to leave the ground, as he, the foreman, wanted none but sound men there.

Another was of a man who had obtained leave of the under-foreman to remain at home, as his wife was dying, and who died the same day. When the man came in the morning to resume his work, he was told by this gentleman to "go and die with her, and be damned" (p. 25), and discharged him accordingly.

They therefore determined no longer to work under such a ruffian, and gave a written notice to Messrs. Grissell and Peto that they would leave unless he was removed. This led to a correspondence with the Commissioners of Woods and Forests, under whose superintendence the Houses of Parliament were then building, both on part of the firm and on part of the men, which ended in the said commissioners believing the employers and disbelieving the men, and acting accordingly—which, we regret to say, is too often the case in such matters.

When Messrs. Grissell and Peto received the notice from the men that they would leave, they stated that they had "every disposition" to remove any real grievance, when "properly represented ;" but they did not see that they were warranted in

removing their foreman. They also regretted that the men did not "sufficiently appreciate the consideration they had always experienced from their hands." It certainly does seem remarkably cool, after what had passed, that this firm should complain that their men did not "sufficiently" appreciate the "consideration" they had received. Did they think the men ought to have remembered their kindness in providing them with beer on an understanding of their own with the brewer? The men, 230 in number, left on the 18th. A deputation, at the request of the firm, had an interview with Mr. Grissell, who repeated with much earnestness the promises made in their letter. Upon the men reminding him, however, that similar promises had been made before which had not been fulfilled, he changed his tone, and tearing the workmen's letter of complaint in pieces before them, he most emphatically declared that to complain of his foreman's conduct to him was perfectly useless ; that on works so extensive as those as he (the foreman) superintended, it was necessary that a discipline similar to that maintained in the army or navy should be enforced, and the masons, in not quietly submitting to it, must be bent on ruining the firm ; that the competency of the foreman to superintend such work would naturally consist in his being such a man as he was ; that a "college-bred, educated man would not suit him ; a harsh and severe individual would only answer his purpose" (p. 31).

The relations of buyer and seller of labour, of master and servant, the subordination of the sailor or private soldier to their respective officers, and all but the slave to his driver, are here jumbled together in this gentleman's mind ; but, amid this confusion of ideas, and, probably, its cause, there was one chief thing, namely, the profit of the firm, to which the whole tended, from which there was no swerving. All remonstrance was therefore "dictation" as to the "manner in which they were to con-

duct their business." As this firm adopted the conduct of their foreman, the masons employed on all the other works upon which they were engaged left their employment, numbering in all to about 400. The strike lasted from September 13th, 1841, to May 25th, 1842, at the end of which period these 400 men, by obtaining employment elsewhere, were reduced to 80, when, "from the open support given by the Government to the employers, in receiving from them inferior work and materials, and extending the time originally allowed for completion, little hopes remained of removing the foreman" (p. 86). The remaining number resolved "to relieve their fellow-workmen of supporting them" by quitting London in quest of employment elsewhere. During this period (nine months), the "Narrative" states that, of the 400, only five cases of "traitorism" occurred ; "during which, also, not a single breach of the law was committed, or a police case occurred." The masons did not succeed in their object, it is true, but then they did without Messrs. Grissell and Peto, and these gentlemen did without the united masons, and so the strike ended.

BUILDERS' STRIKE AND LOCK-OUT.

Of the nine hours' movement, we are of opinion, though desirous of shortening the hours of labour, that it is one of those things which do not admit of being decided by the issue of a strike. The resolution for the strike had been carried, not by the leaders, but by the body at large, by ballot. The time and place, however, had not been determined ; and consequently, in the absence of further irritation, it might have been postponed indefinitely. It might never have taken place at all. The master builders, however, hastened to supply the irritation requisite, by discharging the four men who each presented a memorial on the

subject to four firms, who had been addressed separately. Still, the men hesitated until the man had been discharged by Messrs. Trollope and Son, when the strike took place. What followed is so well known that no further notice is required here. The master builders replied by a "lock-out" from nearly all the firms in the building trade. This is said to have been done on a wise calculation. The lock-out was continued for a month unconditionally, by which it is clear that the basis of such calculation was revenge. If there had been any proper calm calculation they would have discovered that there was, as we have shown, no necessity for the lock-out at all. They now seek to break up trade combinations in their trades altogether. Among the many extravagantly foolish things said by the "Edinburgh" reviewer, he compared the position of the members of the Amalgamated Society of Engineers as being "very like the case of the Maryland or Washington Negroes let out on hire, or Russian serfs under the obrok system" (p. 552). As the applauded advocate of the "declaration" and of the lock-out speaks of slavery and serfdom, it may be worth while to inquire in what they consist.

We have spoken of the principle of exchange being the root of civilised society ; that, in short, civilisation is only the putting into practice the four elements of which it consists. Liberty cannot exist without the right to the use of this principle. A slave cannot as a right demand anything in exchange for his labour ; neither can a serf. The power of free exchange in either would immediately alter their condition to that of free men. It follows, therefore, that whatever reduces the power of demanding a right and proper equivalent for his labour, or, indeed, for anything else he may have for sale, brings that man in just such proportion near to one or other of these conditions. Hence the abject state of those whose necessities compel them to take anything offered for what they have to dispose of. And if a man be com-

pelled by another to exchange or sell his labour to him at a disadvantage, he is deprived, in so far, of his natural liberty ; and he is to all intents and purposes a serf to him who so compels him.

Indeed, in the enforcing the "declaration" there is very little disguise in the matter. The belonging to a combination makes the men "too independent," "insubordinate," "mutinous ;" all of which expressions indicate a state of serfdom, not of free exchangers, and of approval thereof. And so long as this compulsion is used, and in so far as it extends, the man is to all intents and purposes a serf ; and he only is not used so in other respects because such use is impossible in a free country.

The reviewer admits slavery and serfdom to be as we have stated, only he contends that, what he calls the control of the combination over the sale of their labour reduces the men to this condition. But he forgets that the men use the combination—which he so curiously distorts—to give them the power of correcting a disadvantage, namely, their immediate necessities when taken singly, that they might exercise this right of free exchange with benefit to themselves ; while the "declaration" by destroying their combination would take away this power, and consequently transfer this benefit from them to their employers. The one is a voluntary arrangement for their own advantage, the other a compulsory one, at their expense, for the advantage of their employers. The reviewer here, besides confounding freedom with compulsion, mistakes the gaining of an advantage for the losing of one. But as the power of free exchange lies at the root of all liberty and right, so the protection of it is the foundation of all law. There is, therefore, an inconvenience in a free country, where this is acknowledged, attending such enforcement. As no man has a right to prevent another even indirectly, much less directly, from doing that which is lawful and benefi-

cial to himself, there are certain awkward conclusions to which the enforcers lay themselves open. For example, pursuing the same argument, it is said that the lock-out is a great movement, at an immense sacrifice, in favour of "free trade," whatever that may mean, in labour. Free trade is an incomplete expression ; let us, therefore, adopt the more comprehensive term, free exchange, which includes all honest trade. An exchange, to be free, supposes both parties to be on somewhat equal terms ; otherwise, it is likely to become swindling or robbery. Advantage taken by one of the other's ignorance, weakness, or necessities, will very soon become one or other of these crimes. For illustration, though one is scarcely needed, suppose an exchange of blows. It would not be a free exchange if one of the parties were to have one arm disabled or tied down while the other had the free use of both. To take such advantage would be, and is justly deemed, cowardly and infamous. By the "declaration" the employer wishes to deal with his men singly, so that he, whenever he pleases, may give the "sweaters" price for their labour ; their right arm as bargainers being tied down by their necessities in its sale. This he calls free trade, but the freedom is all on his own side. Call it trade, if you will, it is not free exchange. This state of things he wishes to perpetuate, that his workmen may never be able to prevent him taking this advantage ; never be on anything like equal terms with him in this transaction of exchange. He therefore wishes for his own benefit—though in a different form—the result commonly following the two peccadilloes mentioned above, which he is quite aware, also follow an exchange that is not free.

On the cool insolence of refusing to allow their men to combine, when they are in strong combination themselves ; of the declaring the men's combination illegal, when their own is pronounced by high and hitherto uncontradicted legal authority to

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be illegal, and other drolleries, it is not necessary to comment.

APPLICATION OF THE FUNDS OF TRADE SOCIETIES.

The “London Society of Compositors” is a Trade Union ; 2,200 paying members ; re-established, January, 1848, “to protect the wages of labour, agreeably to the provisions contained in the London Scale of Prices (agreed to by a conference of Master Printers and Compositors in 1847), the Scale of Prices regulating News and Parliamentary Work, and such customs and usages as belong to the profession, not directly mentioned in the said Scales.” The terms of admission are, the serving of seven years to the business, either by indenture or patrimony. The weekly payments of each member are “proportioned to his earnings— i.e., under 10s., nil. ; 10s., and less than 20s., 2d. ; 20s., and less than 30s., 3d. ; 30s. or more, 4d. per week.” About 700 members pay an additional 2d. per week to what is called the “Provident Fund,” which entitles them to receive a small weekly allowance when out of work ; and on an average of the last ten years, the Society has paid £500 per annum to unemployed members. The Society has a library and reading rooms at 3, Raquet-court, Fleet-street. The library contains more than 4,000 volumes, about 1,000 of which are in constant use. The reading-rooms are supplied with all the principal newspapers and periodicals of the day, and are open daily from 9 a.m. till 10 p.m. The librarian, within those hours, will show any respectable person over the premises. The Society is also the medium of considerable sums being raised for the benefit of widows and children of members in distress ; and it subscribes yearly to a dozen or more of the principal medical charities of the Metropolis, that it may be enabled to give letters of recom-

mendation to sick members or their wives or children. A sum is allowed members whose tools may have been destroyed by fire. The library and reading room were established (in 1855) to prevent resort to public houses.

Our own Society—the Bookbinders', established 1787—is similarly constituted, having also a library of about 1,800 volumes, which, for some time, was the only one connected with a Trade Society, and an office, a house of call apart from a public-house, at No. 5, Raquet-court, Fleet-street. The terms of admission are the same. Number of members about 600. Allowance to members out of employ 8s. 6d. a-week for ten weeks ; and sometimes there is a subscription to give additional relief to their unemployed members. Payment to the Society, 2s. a-month. Relief to the sick is granted by a levy of 6d. a member upon a "Petition" for such benefit. There are also six pensioners, two at 3s. a-week, and four at 2s. 6d. Amount paid to unemployed members, for the last seven years, £3,055 2s. 6d. In disputes on wages, prices, &c., during the same period, £98 14s. 4d. ; which will show, in ordinary circumstances, the actual proportion that "Strikes" bear to the proceedings of a Trades' Union. For the sick, by "Petition," has been paid, for the same period, £1,309 1s. To the library £10 a-year is applied for the purchase of books.

These are two Trades' Unions pure and simple ; their benefits for sick being either voluntary or by additional levy. The amount paid by the compositors to their "Widows and Orphan Fund" is quite as much, or more, in proportion to number, as that paid by our own Society to the sick. We are not aware that any more is here put down than is paid by any other Trades' Union. By these, as a sample of the rest, the "Edinburgh" reviewer may see how their "Capital" is disposed of.

"DICTATION."

Trades' Unions are brought to bear against employers in disputes for wages. They assert the principle of exchange. Now, without insisting that in all cases they assert this principle wisely, this is the inherent source of their action. They say such and such labour is worth a certain price, which is either agreed to or not by the employers who have need of that labour. Now, how is this demand oftener than not met by opposing employers? By the reply that they will not be "dictated to," or "interfered with in the way in which they see fit to conduct their business." It is plain, therefore, that into the minds of those who use these expressions the idea of labour being subject to the principle of exchange does not enter. With them it is something which should always be at their command at their own price, resistance to which is "insubordination" and "mutiny." We should be glad to be informed wherein the ideas of such employers differ from those of serf owners in like circumstances? Would Mr. Black inform us what would be the probable conduct of the sellers of corn or sugar if they were accused of insubordination and mutiny, and treated accordingly by their customers, because the said sellers would not sell at the others' own price? And yet such, when reduced to its true issue, is the idea of the "Edinburgh" reviewer and the numerous class he represents. He and they would put down Trades' Unions, because they, as he asserts, impede the action of those who employ labour—they "dictate to" and "interfere with them in the way in which they see fit to conduct their business." Now, conceding to these, and to all employers, the full right to refuse to agree to the wages their workpeople demand, we ask, is there anything in the known acts of this class so pure, guileless, and free from blame for oppression, cruelty, or dishonesty, that they should be exempted by law from such "interference," and, as they are pleased to call

it, “dictation?” Were not certain proprietors of coal mines, who employed females in a state of nudity to work with men in their mines, so impressed with the idea that such was the proper mode of conducting their business, that it required an Act of Parliament to convince them of the contrary? Were not a majority of the cotton manufacturers so thoroughly impressed with the idea that the employment of children of tender years, and for excessive hours, was the only fit and proper way of conducting their business, that it also required an Act of Parliament to restrain them? Was not the truck system—that is, the payment of wages to a great extent, sometimes wholly, in goods, very often of bad quality at the price of good articles, sold by the employer—also deemed a fit and proper mode of conducting their business by many employers, until an Act of Parliament was required for its repression? To give all the instances that might be adduced to show the contrary would more than fill this publication ; take, therefore, only the most recent instance in the Hinckley stocking weavers, the employers of which trade let out the frames, which cost £3, at an annual rent of £2 12s. (1s. a week). In the trial, *Homer v. Taunton*, wherein this came out, it was, as reported in the *Standard*, of Dec. 29, 1859, stated on oath, illustrative of the way in which this rent was exacted : “That, when trade was bad, witness only earned 1s. 10d. a week, and then his employer took off the full frame rent of 1s., and left him 10d.” It is true that, after much remonstrance and difficulty, he got off that week by paying only sixpence out of the 1s. 10d. ; but even that shows how rigorously this rent is exacted.

Now we do not blame a class for the acts of a certain number of dishonest persons who may happen to belong to it. Our object is to show that the predatory instincts of our nature belong to the employer class as well as to every other ; and that, therefore, they have no right to claim exemption from the checks to

which they may be subject from their workmen in the matter of wages ; that there is no more reason to suppose that their estimate of what ought to be paid will be just any more than that of their workpeople.

It has been stated, in the *Standard* of November 24, 1859, for the information of the "misguided operatives," that the employers have to struggle against hardships and difficulties no less severe than those, though of a different kind, endured by working men ; instancing in times of panic, when wages are not reduced, that profits are swallowed up in high discounts, when they work not for themselves, but for their bankers ; that they also suffer from bad debts, Mr. Commissioner Fane having stated that upwards of £50,000,000 annually, or £1,000,000 a week was sacrificed in bad debts ; and as the employed do not pass through the Bankruptcy Court, the "loss fell on the class of employers." The writer of this article might also, with great propriety, have said, for the same reason, that this loss was inflicted on the "class of employers," not by working men, but by one another. Talk of the expense that now and then a "strike" involves, or the far greater expense of a "lock-out," what is the expense of either, or both put together, to this enormous loss inflicted upon the employer class by the recklessness or dishonesty, or both, of themselves? It certainly is very cool in the writer of this article to suggest, as he does, that their workmen ought to make up, by a reduction of wages, this wholesale plunder of each other. The banker will not forego his claim ; so, from the nature of things, the workmen must, as there is nothing left out of which he can be paid his proper wages. It is also very cool of this class, after robbing each other to so enormous an annual amount, to assume a virtuous indignation, and tell their workpeople that their demand of a certain wage is a dishonest one, and that the combination by which such demand is sup-

ported shall be put down, and to issue a declaration that they will employ no one who belongs to it.

The *Times*, of December 20, 1859, has the following in a leading article :

Well, let us see, the British manufacturer has his virtues, as we know ; his home virtues we will say nothing about, lest Sir Cresswell Cresswell arise to rebuke all universal eulogy. But he also must have his code of trade virtues. He must not forge a trade mark ; he must not send an article out of his warehouse which would kill or maim any one who should use it ; he must not sell a wooden stick and guarantee it to be cotton ; he must not sell cast iron cutlery and call it steel ; he must not send out a pair of scissors never intended to cut, or an axe that would fly to pieces at the first stroke. If there are people who have in the trade a better name than himself, he must never outstep the fair pace of emulation ; it must not enter into his mind to forge their names and destroy their credit by affixing their brand to coarse and worthless goods. These are the very rudiments of commercial morals. They are the equivalents to “Thou shalt not kill,” “Thou shalt not steal,” “Thou shalt not bear false witness.” Yet, heaven help us ! these are the very acts which are attributed to these very respectable persons as every-day practices. These are cropping up in our law books and taking rank in our police cases. They are growing into a “custom of manufacturers.” They have been solemnly presented to a court of justice for its sanction.

We make no comment on this extract. We do not cite it, or mention anything else belonging to capitalists as a *tu quoque*, or as a set-off against any misdeeds of which the working class may have been guilty, still less to draw attention to their vices ; for it is written, “There is none that doeth good, no not one.” We only ask whether capitalists have any right to claim exemption from the natural check which the assertion of the principle of exchange by combinations gives to their workpeople? or whether it would be conducive to the moral prosperity of the

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CONCLUSION.

community that the law should, as many of this class desire, so exempt them?

3. CONCLUSION.

In the foregoing pages we have attempted to show that Trades' Unions are necessary to secure to the workmen a free, and consequently fair, exchange for his labour, which, from a disadvantage inherent in his position, he is unable otherwise to obtain. We have also—we hope successfully—replied to the various charges brought against them. In doing so we have endeavoured to trace out the cause which leads to the misuse of capital on the one hand, and of Trades' Unions on the other. This we find to be an instinct of evil inherent in the very nature of man, belonging not merely to capitalists and workmen, but to the whole human family, which, for want of a better term, we have called the predatory instinct. Within due bounds this instinct, doubtless, lies at the root of all energy and enterprise ; allowed to predominate, it is the source of every evil. To subdue this to its proper use should be the aim of all who would promote the well-being of their own and every other class of society.

Applying this to employer and employed, it is of the highest importance that there should be a good understanding between them ; that neither should vex or offend the other. Both are afflicted equally with this evil instinct, and each should learn to bear with the other. Neither class can injure the other without at the same time injuring itself. Both are so essential to each other, and so intimately connected, that one cannot be injured without the other feeling it ; and, consequently, no triumph can be gained at the expense of justice by either class over the other with impunity. While the workmen should weigh well the price they put upon their labour, and endeavour to make themselves

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acquainted with the principles that determine its value, the employers should act reasonably, and listen to what their men have to say.

The “Quarterly” reviewer, whose candour we have before acknowledged, well observes, p. 521 :

“At the same time employers ought not to stand too strongly upon their rights, nor entrench themselves too exclusively within the circle of their own order. Frankness and cordiality will win working men’s hearts, and a ready explanation will often remove misgivings and dissatisfaction. Were there more trust and greater sympathy between classes, there would be less disposition to turn out on the part of men, and a more accommodating spirit on the part of the masters.”

The italics are ours, as the endorsement of forty years’ experience ; for it is certain that the working classes will give their esteem and confidence to those whom they believe to be actuated by similar feelings towards themselves.

We have before said the true state of employer and employed is that of amity, and that they are the truest friends, each of the other—for each derives his revenue from the other. And the fact is, notwithstanding all that has been written to the contrary in the “Quarterly” and “Edinburgh” Reviews, and from them down to the humblest writer who has added his little spark to the general blaze—that this state is for the most part their actual condition. Under no other circumstances could the trade and manufactures of the country have so greatly prospered and extended. It should, therefore, be the duty of both to prevent this harmony being interrupted. Each should consider this state their true relation, and consider its interruption the greatest of calamities.